



CHAPTER lxxx.

An Act to consolidate with amendments and additions the provisions of the Acts relating to the Tees Valley Water Board. A.D. 1907.
[26th July 1907.]

WHEREAS by the Stockton and Middlesbrough Corporations Waterworks Act 1876 (hereinafter referred to as "the Act of 1876") a joint board consisting of six members of the council of the borough of Stockton-on-Tees and six members of the council of the borough of Middlesbrough was constituted by the name of "The Stockton and Middlesbrough Water Board" and was authorised to acquire and did acquire the undertaking of the company of proprietors of the Stockton and Middlesbrough Waterworks : 39 & 40 Vict.
c. ccxxx.

And whereas under the powers of the South Stockton Local Board (Water) Act 1884 the South Stockton Local Board acquired from the corporation of Stockton one twelfth interest in the said undertaking and the corporation of Thornaby-on-Tees as the successors of the said local board are now entitled to that one twelfth interest so that the corporations are now interested in the undertaking in the following proportions (namely) The Stockton Corporation five twelfths the Middlesbrough Corporation six twelfths and the Thornaby-on-Tees Corporation one twelfth and the members of the joint board are chosen five by the Stockton Corporation six by the Middlesbrough Corporation and one by the Thornaby-on-Tees Corporation : 47 & 48 Vict.
c. clxxiii.

And whereas by the Tees Valley Waterworks Act 1899 the name of the joint board was changed and is now "The Tees Valley Water Board" (hereinafter referred to as "the Board") : 62 & 63 Vict.
c. li.

And whereas the Board are by virtue of the Acts and the Provisional Orders confirmed by Parliament which are described in the First Schedule to this Act and are hereinafter collectively

A.D. 1907. — referred to as “the Water Acts” authorised to supply and do supply water within the boroughs of Stockton Middlesbrough and Thornaby-on-Tees and the parishes and other places mentioned in the Second Schedule to this Act :

And whereas the works of the Board which are completed and in use for the supply of water are described in the first part of the Third Schedule to this Act and the works which are authorised but are not yet completed are described in the second part of the said schedule :

And whereas a statement of the borrowing powers for water purposes of the three corporations under the Water Acts and of the extent to which they have been exercised together with other particulars is set forth in the Fourth Schedule to this Act and it is expedient that the said powers should so far as they have not been exercised be re-enacted as in this Act provided :

And whereas many of the provisions of the Water Acts are obsolete or superseded and it is expedient to repeal the Water Acts and to consolidate such of their provisions as are still in force into one Act with such amendments and additions as may be approved by Parliament :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

I.—PRELIMINARY.

Short title.

1. This Act may be cited as the Tees Valley Water (Consolidation) Act 1907.

Incorporation of general Acts.

2. The Lands Clauses Acts except the provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement and except section 127 of the said Act ;

The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner
“or reputed owner of any such house or of the agent of
“such owner” in section 44 of the Waterworks Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts ;

are hereby (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) incorporated with this Act.

3. In this Act unless the context otherwise requires—

Interpreta-
tion.

“Existing” means existing at the commencement of this Act ;

“The boroughs” means the borough of Stockton-on-Tees in the county of Durham the county borough of Middlesbrough in the north riding of the county of York and the borough of Thornaby-on-Tees in the north riding of the county of York ;

“The corporations” means the mayor aldermen and burgesses of the boroughs respectively ;

“The waterworks undertaking” or “the undertaking” means the waterworks and all lands buildings and property of every description and all rights and privileges belonging to vested in or held by or on behalf of the Board ;

“Water rate” includes every sum of money payable to the Board for a supply of water ;

“Riparian owner” means any riparian owner on the River Lune the River Balder the River Tees or any of them below the Hury and Grassholm Reservoirs or either of them ;

The several Acts described in the First Schedule to this Act other than the South Stockton Local Board (Water) Act 1884 are respectively referred to in this Act as the Act of the year in which the same were respectively passed ;

“The Tees Salmon Fishery Board” means the board of conservators of the Tees Salmon Fishery District constituted under the Salmon Fishery Act 1865 ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture

A.D. 1907.

stock stock or other security (not being annuities rent-charges or securities payable to bearer) authorised by or under any Act of Parliament passed or to be passed of any local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the authority with reference to the investment of whose funds the expression is used.

Words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have in this Act unless it is otherwise provided or the context otherwise requires the same respective meanings.

Commence-
ment of Act.

4. This Act shall come into operation on the first day of October one thousand nine hundred and seven which date is hereinafter referred to as "the commencement of this Act."

II.—REPEAL OF WATER ACTS AND SAVINGS.

Repeal of
Acts.

5. Subject as in this Act mentioned the Water Acts (described in the First Schedule to this Act) are hereby repealed as from the commencement of this Act.

Continuance
of incorpora-
tion of
Board.

6. Notwithstanding the repeal effected by this Act the Board shall continue incorporated by the name of the Tees Valley Water Board with perpetual succession and a common seal and with power to purchase take hold and dispose of lands for the purposes of the waterworks undertaking.

Undertaking
to continue
vested in
Board.

7. Notwithstanding the repeal effected by this Act the waterworks undertaking of the Board as it exists at the commencement of this Act shall continue vested in the Board and be held exercised and enjoyed by them subject to the provisions of this Act.

Saving for
securities &c.

8. Notwithstanding the repeal effected by this Act—

- (i) All acts works matters and things before the commencement of this Act done or commenced under the powers of the Water Acts or any of them and which were at the commencement of this Act valid and available or in progress and all existing awards agreements contracts conveyances covenants deeds leases obligations rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if this Act had not been passed:

- (ii) All existing mortgages or other securities granted or created by any of the corporations (or in the case of the corporation of Thornaby-on-Tees by their predecessors the South Stockton Local Board) shall be and continue as valid and available against the corporations respectively and the property and rates comprised in any such mortgage or other security as if this Act had not been passed and the holders of all such mortgages or other securities shall be in the like position in all respects and entitled to the like priorities powers rights and remedies as if this Act had not been passed;

And the corporations respectively shall have exercise and be subject to the like powers duties liabilities and obligations in respect of all such mortgages and other securities and the reborrowing and repayment of any principal moneys and otherwise as if this Act had not been passed :

- (iii) All actions arbitrations prosecutions or other proceedings or causes of action arbitration prosecution or other proceedings pending or existing by with against or in favour of the Board at the commencement of this Act may be continued commenced or prosecuted by with against or in favour of the Board as if this Act had not been passed :
- (iv) All water rents and other sums at the commencement of this Act due or accruing due to the Board may be collected and recovered by the Board as if this Act had not been passed :
- (v) All plans sections and books of reference and all corrections and certificates of corrections thereof respectively deposited for the purposes of any of the Water Acts with any clerk of the peace shall remain in his custody as if they had been deposited for the purposes of this Act and every such clerk of the peace shall accordingly permit the same to be inspected and copies thereof and extracts therefrom to be taken and all such plans sections books of reference corrections and certificates shall be receivable in evidence as they would have been if this Act had not been passed :

A.D. 1907.

(vi) All other books and documents which under any of the Water Acts or otherwise would have been receivable in evidence shall be receivable in evidence as if this Act had not been passed.

Continuance
of certain
protective
provisions of
Water Acts.

9. Notwithstanding the repeal effected by this Act the several sections of the Water Acts as set forth in the Fifth Schedule to this Act shall so far as they have not been executed and are respectively in force at the passing of this Act continue in force to the like extent as but not further or otherwise than they would have continued in force if this Act had not been passed and so as to preserve unaltered and unaffected the obligations priorities and rights as well of the Board as of the persons public bodies and companies and their respective heirs successors or assigns and their respective estates to which the said sections respectively relate.

III.—PROVISIONS AS TO THE BOARD.

Act to be
executed by
Board.

10. This Act shall (except the provisions which are to be executed by the corporations respectively) be executed by the Board.

Constitution
of Board.

11. The Board shall consist of twelve members of whom five shall be chosen by the Stockton Corporation six by the Middlesbrough Corporation and one by the Thornaby-on-Tees Corporation from the members of their respective councils in accordance with the provisions of this Act. Provided that the existing members of the Board shall be deemed to have been chosen under the provisions of this Act and shall respectively continue to hold office for the periods for which they would respectively have held office if this Act had not been passed.

Retirement
of members.

12. The members of the Board shall go out of office in accordance with the following regulations:—

On the ninth day of November in the year one thousand nine hundred and eight and in every third year subsequently one of the members elected by the Stockton Corporation shall go out of office and on the ninth day of November in every other year two of such members shall go out of office:

On the ninth day of November in each year two of the members elected by the Middlesbrough Corporation shall go out of office:

On the ninth day of November in each year the member A.D. 1907.
elected by the Thornaby-on-Tees Corporation shall go out
of office.

13. Any member of the Board may resign his office by notice in writing signed by him and addressed to the town clerk of the corporation by which he was elected and the casual vacancy caused by his resignation shall be deemed to have occurred on the day on which such notice is received by the town clerk. Power to resign.

14. No person elected shall in any case continuously remain in office (without re-election) for more than three years and any member at any time ceasing to be a member of the council by which he has been elected shall cease to be a member of the Board. Duration in office of members of Board.

15. At the quarterly meeting of the respective councils of the corporations in November in each year members shall be elected by the council of each of the corporations to take the place of those going out of office as hereinbefore provided and so many others as may be necessary to complete the full number of the members representing each corporation on the Board. Election of new members.

Any member going out of office or otherwise ceasing to be a member shall if qualified be re-eligible.

16. Any casual vacancy occurring by death resignation disqualification or failure duly to elect members of the Board shall be filled up by the council of the corporation by whom the vacating member was originally elected out of its own members within six weeks of the vacancy so occurring but the member so chosen shall retain his office so long only as the vacating member would have retained the same if no vacancy had occurred. Casual vacancies.

17. Meetings of the Board shall be held and the proceedings thereat conducted in accordance with the rules as to meetings and proceedings contained in the Sixth Schedule to this Act. Meetings of Board.

18. Any minute made of proceedings at a meeting and copies of any orders made or resolutions passed at a meeting purporting to be signed by the chairman of the meeting at which such proceedings took place or such orders were made or resolutions passed or by the chairman of the next ensuing meeting shall be received as evidence in all legal proceedings and until the contrary is proved every meeting where minutes of the proceedings have been so made shall be deemed to have been duly convened and held and all the proceedings thereat to have been duly had. Authentication of minutes &c.

A.D. 1907.

Appoint-
ment of
officers.

19. The Board shall from time to time appoint fit and proper persons to be clerk and treasurer and shall also appoint or employ such other officers collectors servants or assistants as may be necessary and proper for the efficient execution of this Act and may make regulations with respect to the duties and conduct of the officers and servants so appointed or employed Provided that the existing officers and servants of the Board shall continue in office in accordance with and subject to the terms and conditions of their respective engagements.

Arbitration.

20. If at any time any difference arises between the Board and any of the corporations respecting any matter arising out of the provisions of this Act the same shall be referred to and be settled by the Local Government Board or by an arbitrator appointed by them and the Local Government Board or arbitrator as the case may be shall have an absolute discretion both as to the matters in dispute or difference and as to the costs of such reference.

IV.—WORKS.

Completion
of works.

21.—(1) The Board shall complete and thereafter maintain in and according to the lines and levels shown on the plans and sections deposited for the purposes of the Acts of 1876 and 1890 respectively the works mentioned in Part II. of the Third Schedule to this Act (subject as to the Tunnel or Conduit No. 1 by the said Act of 1876 authorised to the provisions of the section of this Act whereof the marginal note is "Power to take water from Rivers Lune and Balder and other streams") together with all necessary and proper embankments dams channels basins bye-washes weirs culverts cuts bridges road-diversions road-approaches and other roads and communications sewers drains sluices filtering-beds reservoirs wells engines engine-houses pumps conduits catch-waters tanks mains pipes and other apparatus for the effectual construction maintenance and use of the said works or incidental thereto and may enter upon purchase take and use such of the lands delineated on the said plans and described in the books of reference deposited for the purposes of the Acts of 1876 and 1890 as may be required for those purposes.

(2) In constructing any of the works mentioned in this section the Board may subject to the provisions of this Act deviate from the lines thereof within the limits of deviation shown on the said deposited plans and may deviate from the levels shown on the said deposited sections in the case of the Grassholm Reservoir to

any extent not exceeding three feet but they shall not construct the embankment of that reservoir of a greater height above the general surface of the ground than that shown on the deposited sections and in the case of the Conduit No. 1 Conduit No. 9 and Conduit No. 10 to any extent not exceeding ten feet but not so as to raise above the surface of the ground any part of Conduit No. 9 or Conduit No. 10 shown on the said deposited sections as being below the ground nor to raise the said conduits shown on the said sections as above the surface of the ground to any greater height above the surface than is thereon shown except that in crossing any railway any conduit may at the option of the owner or owners of such railway be carried under the railway in a culvert or over the railway by means of a bridge.

A.D. 1907.

(3) In the event of any difference arising between the corporation of Darlington or the millowners or other parties interested and the Board as to the nature or mode of constructing the said works such difference shall be referred to an arbitrator to be appointed in case the parties do not agree by the President of the Institution of Civil Engineers.

22. If the several works by this Act authorised to be completed are not completed before the thirty-first day of December one thousand nine hundred and fourteen then from and after that date the powers granted to the Board by this Act for executing the same or otherwise in relation thereto respectively shall cease except as to so much thereof as is then completed.

Period for completion of works.

23. The Board may maintain repair and renew all or any of their existing works and may upon any lands for the time being belonging to them make and maintain all such buildings cuts pipes conduits culverts drains sluices water towers overflows gauges filter beds tanks banks walls bridges approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Maintenance of works and execution of subsidiary works.

24. The Board shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them after the passing of this Act unless the works and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting powers of Board to abstract water.

A.D. 1907.

V.—LANDS.

Power to
agree as to
drainage of
lands &c.

25. The Board may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the Board's reservoirs and works with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be diverted collected and appropriated by the Board flowing to upon or from such lands directly or derivatively into such reservoirs and works.

Power to
hold lands
for protec-
tion of
waterworks.

26. The Board may hold any lands acquired by them which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Board shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Power to
certain per-
sons to grant
easements
&c. by agree-
ment.

27. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
exchange
lands.

28. Subject to the provisions of the Lands Clauses Acts with respect to superfluous lands the Board may from time to time exchange any lands acquired by them under the Water Acts or this Act which they have power to sell for other lands which they are authorised or empowered to acquire under this Act and may on every such exchange give or take money for equality of exchange All money so given or taken by the Board shall be deemed to be purchase money paid or received on a purchase or sale by them of lands which they are authorised or empowered to acquire or sell under this Act.

29. The Board may for any of the purposes of this Act from time to time take by agreement any lands not exceeding in the whole twenty acres and any easement power or privilege therein thereunder thereover or thereupon (not being an easement or privilege of water) which shall be deemed necessary by the Board but nothing in this Act shall exempt the Board from any indictment action or other proceeding for nuisance in the event of any nuisance being caused by them upon any land taken under the powers of this section.

A.D. 1907.

Power to take additional lands by agreement.

30. The Board may subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands from time to time sell any part of the works lands and property constructed or acquired or held by them for any of the purposes of this Act and not required by the Board for such purposes.

Power to sell surplus lands.

31. On the sale by the Board of any lands acquired under the provisions of the Water Acts or of this Act they may reserve to themselves all or any part of the water or water rights and other easements belonging thereto and may make the sale subject to such reservations accordingly and may make also any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use or flow of water exercise of noxious trades or discharge passage or deposit of manure sewage or other matter as they think fit.

Reservation of water rights &c. on sale.

VI.—WATER RIGHTS AND COMPENSATION WATER.

(1) *Water Rights.*

32. The Board may continue for the purposes of their undertaking to divert take appropriate and use water from the River Tees at or near the place called Broken Scar in the parish of Darlington and with such water to supply the authorities bodies and persons whom they are authorised to supply under this Act:

Power to take water from River Tees.

Provided that until the thirty-first day of December one thousand nine hundred and fourteen or the completion of the Grassholm Reservoir and Conduit No. 1 authorised by the Act of 1876 and the Conduits No. 9 and No. 10 authorised by the Act of 1890 whichever shall first happen the quantity of water to be taken from the River Tees for the supply of water (with due care to avoid waste) shall not exceed seventy million gallons in any one week reckoned from twelve o'clock at noon on one Saturday to twelve o'clock at noon on the following Saturday:

A.D. 1907.

And provided that from and after the thirty-first day of December one thousand nine hundred and fourteen or the completion of the said works whichever shall first happen the quantity of water so to be taken as aforesaid shall not exceed sixty million gallons in any one such week as aforesaid.

For protection of Darlington Corporation.

33. The Board shall until the thirty-first day of December one thousand nine hundred and fourteen or the completion of the Grassholm Reservoir whichever shall first happen maintain in good condition to the satisfaction of the corporation of Darlington or their engineer and without obstruction a communication from the north-eastern corner of the northernmost storage tank at the pumping station of the Board at Broken Scar to the northernmost subsiding tank at the pumping station of the said corporation at Tees Cottage by means of the cast-iron pipe constructed by them in pursuance of section 19 of the Act of 1890 and the Board shall if and where necessary make good such pipe and shall insert therein and maintain a proper valve to which the servants of the said corporation authorised by them in that behalf shall have free access at all times and until the said thirty-first day of December one thousand nine hundred and fourteen it shall be lawful for the said corporation by means of such pipe and valve at all times when necessary for keeping up the supply of their district to draw water from the said storage tank without let or hindrance and without charge therefor and the Board shall keep the said storage tank filled with water to the level of the overflow sill whenever and so long as the said corporation require to draw water therefrom for keeping up such supply Provided that if the said pipe shall prove to be too small the Board shall at their own expense replace it by one sufficiently large for the purpose.

Power to take water from Rivers Lune and Balder and other streams.

34. Subject to the provisions of this Act the Board may continue for the purposes of the undertaking to divert take impound appropriate and use the waters of the gathering ground of the River Lune and of the gathering ground of the River Balder above the embankments of the Grassholm and Hury Reservoirs and all other streams and waters shown or mentioned on the plans deposited for the purposes of the Act of 1876 as intended to be intercepted or otherwise taken by means of the works authorised by that Act and all waters found in on or under any of the lands taken for the purposes of any of their reservoirs or the Lartington tank and filter beds and the Board may with such water supply the authorities bodies and persons whom they are authorised to supply under this Act:

Provided that the Board from the gathering grounds of the River Lune and the River Balder in this section referred to shall not for purposes of supply take in any one day a larger quantity of water than thirteen thousand three hundred and fifty gallons a minute and nothing in this Act shall authorise the extension or enlargement of any of the reservoirs mentioned in section 57 of the Act of 1876:

A.D. 1907.

Provided also that the Tunnel or Conduit No. 1 by the said section authorised shall be so made and maintained that the storage capacity of the Grassholm Reservoir below the level of the invert of the inlet of the said tunnel or conduit shall not be less than eleven hundred million gallons and the Board shall not draw off appropriate or use for supply any water from the Grassholm Reservoir at any time under any conditions so long as there shall be remaining in the said reservoir a less quantity of water than eleven hundred million gallons.

The said reservoir and tunnel or conduit and the works immediately connected therewith shall at all reasonable times both during and after construction be open to the inspection of an engineer to be appointed by the corporation of Darlington in order to ascertain that the same are constructed and maintained in conformity with the provisions of this section.

35. The Board shall maintain in an efficient state of repair the existing gauge (constructed under section 58 of the Act of 1876 as altered by section 7 of the Act of 1888) so as to be capable of measuring and registering any quantity of water which may from time to time be taken by the Board under the authority of this Act for supply from the gathering grounds of the Rivers Lune and Balder hereinbefore referred to and the corporation of Darlington the Tees Conservancy Commissioners the Tees Salmon Fishery Board the riparian owners and the respective occupiers of mills and works interested in the discharge of compensation water and their officers and servants duly authorised shall at all reasonable times have the right of access to and inspection of the said gauge for ascertaining the state of repair and efficiency thereof and of gauging and ascertaining the quantity of water passing over or through the same Any difference arising between the said parties respectively as to the nature or mode of construction of the said gauge or the maintenance thereof shall be settled by the President of the Institution of Civil Engineers for the time being or by some competent person to be appointed by him whose decision shall be final and binding on all parties.

Gauge of
water taken
for supply.

A.D. 1907.

(2) *Compensation Water.*

Compensation for water taken from River Lune.

36. As compensation for the waters of the River Lune to be taken impounded and appropriated under the powers of this Act and before the Board shall be entitled to take the same or any part thereof for the supply of their district the Board shall cause to flow from and out of the Grassholm Reservoir or the works immediately connected therewith into the River Lune a quantity of water not being less than four thousand three hundred and fifty gallons per minute in the manner hereinafter mentioned.

Compensation for water taken from River Balder.

37. As compensation for the waters of the River Balder to be taken impounded and appropriated under the powers of this Act and before the Board shall be entitled to take the same or any part thereof for the supply of their district the Board shall cause to flow from and out of the Blackton or Hury Reservoirs or one of them or the works immediately connected therewith into the River Balder a quantity of water not being less than two thousand three hundred and twenty-five gallons per minute in the manner hereinafter mentioned.

Until the Grassholm Reservoir and the works immediately connected therewith shall be completed and the discharge of compensation water therefrom shall be commenced if the Board shall take in any one day from the gathering ground of the River Balder hereinbefore referred to for the supply of their district a larger quantity of water than four thousand six hundred and fifty gallons a minute they shall in addition to the above-mentioned quantity of two thousand three hundred and twenty-five gallons per minute cause to flow from the Hury Reservoir as compensation to the River Balder a quantity equivalent to one half of the additional quantity taken for supply.

Compensation water to be discharged continuously.

38. The several above-mentioned quantities of compensation water of four thousand three hundred and fifty gallons and two thousand three hundred and twenty-five gallons together with the additional compensation water (if any) shall be respectively discharged in a regular equal constant and continuous flow during the whole twenty-four hours of every day in the year:

Provided that the corporation of Darlington and the Tees Salmon Fishery Board may at any time but not more frequently than twice in any month by notice in writing under the hands of the town clerk of Darlington and the clerk to the Tees Salmon Fishery Board require the Board to reduce the four thousand three hundred and fifty gallons per minute to be discharged from the Grassholm Reservoir or the works immediately connected

therewith to two thousand nine hundred gallons per minute and to accumulate in the said reservoir to the extent of its available capacity one thousand four hundred and fifty gallons of water per minute for a period of ten days or five days and on the expiration of such period of ten days or five days as the case may be to discharge the quantity so accumulated in a regular equal constant and continuous flow during twenty-four hours or twelve hours as the case may be in addition to the four thousand three hundred and fifty gallons per minute as aforesaid. A.D. 1907.

39. For the purpose of measuring the quantity of compensation water to be discharged by the Board into the River Lune as aforesaid the Board shall cause to be erected at some point on that river below the Grassholm Reservoir and not more than two hundred yards therefrom a sufficient gauge to be made to the satisfaction of any engineer for the time being appointed for the purpose by the corporation of Darlington the Tees Conservancy Commissioners the Tees Salmon Fishery Board the riparian owners and the occupiers of the several mills and works now erected or to be hereafter erected and who may be interested in such compensation water and the said gauge shall for ever thereafter be maintained in a proper state of repair by and at the expense of the Board. Gauge to be constructed on River Lune.

40. For the purpose of measuring the quantity of compensation water to be discharged by the Board into the River Balder as aforesaid they shall at all times maintain in a proper state of repair at their own expense the gauge which has been erected for that purpose below the Hury Reservoir. Maintenance of gauge on River Balder.

41. The corporation of Darlington the Tees Conservancy Commissioners the Tees Salmon Fishery Board the riparian owners and the respective occupiers of mills and works interested in the discharge of compensation water and their officers and servants duly authorised shall at all reasonable times have the right of access to the said gauges for the purpose of ascertaining the state of repair and efficiency thereof and of gauging and ascertaining the quantity of water from time to time passing over or through the same respectively. Right to inspect gauges.

42. If at any time any of the said gauges should be in an unfit state of repair or condition for the purpose for which it is intended the same shall be forthwith put in a proper state of repair and condition by and at the expense of the Board or if they fail so to do within seven days after notice given to Repair of gauges in case of default of Board.

A.D. 1907. them by or on behalf of the corporation of Darlington the Tees Conservancy Commissioners the Tees Salmon Fishery Board the riparian owners or the occupiers of mills or works interested in the discharge of compensation water or any of them requiring the Board to repair or renew the same it shall be lawful for the said bodies or persons or any of them to cause all necessary works of repair or renewal to be executed and to recover the expense of such works from the Board in any court of competent jurisdiction.

Penalty in case of failure to discharge compensation water.

43. If at any time the Board fail to discharge or cause to flow over or through the said gauges or any of them the quantity of compensation water which they are required to discharge or cause to flow over the same under the provisions of this Act they shall for every day of such failure forfeit and pay to the occupier of every mill or other work interested in the supply of water under this Act who shall sue for the same in any court of competent jurisdiction within one month after such failure shall have occurred and prove damage the sum of five pounds and to the corporation of Darlington or the Tees Salmon Fishery Board the sum of twenty-five pounds :

Provided that the Board shall not be liable to forfeit any sum under the provisions of this section if the failure to discharge the requisite quantity of water has arisen from or has been occasioned by unavoidable cause or accident.

Board to provide recording instruments at their gauges &c.

44. The Board shall provide and at all times maintain in proper working order suitable automatic recording instruments and other apparatus to indicate the quantity of water being pumped from the Tees at their pumping station at Broken Scar and in connection with each of the gauges required by this Act to be maintained for indicating and recording the quantity of water from time to time flowing over or through the same and the Board shall allow one inspector to be from time to time appointed by the corporation of Darlington one inspector to be from time to time appointed by the riparian owners and one inspector to be from time to time appointed by the Tees Salmon Fishery Board at all times together or separately without let or hindrance to have full and free access to their pumping station and to such gauges instruments and other apparatus and the records thereof and to inspect verify and take copies of and extracts from such records and to examine and test the state of repair and efficiency of the gauges instruments and other apparatus aforesaid and to ascertain and take a note of the several quantities

of water which from time to time have been or are being taken from the River Tees or have passed or are passing over or through such gauges respectively. A.D. 1907.

If any difference shall at any time arise between the said parties respectively or any of them as to the nature position sufficiency accuracy mode of construction or employment or state of repair of any of such gauges recording instruments and other apparatus the same shall be referred to and determined by a competent engineer to be agreed upon by the parties in difference or failing agreement to be appointed by the President for the time being of the Institution of Civil Engineers on the application of any or either of the parties and the referee shall have power to give such orders and directions as he may see fit in order to ensure the due observance and performance of the provisions of this section which orders and directions shall be duly observed and performed.

45. If any person shall wilfully damage interfere with alter destroy or render unserviceable or falsify any of the gauges recording instruments or other apparatus or records mentioned in this Part of this Act he shall for every such offence be liable to a penalty not exceeding five pounds to be recovered summarily without prejudice to any other liability or cause of action which may arise out of or by reason of such act. Penalty for damaging gauges recording instruments &c.

46. The Board shall at least once in every month make a report of the quantities of water taken in each week (reckoned from twelve o'clock at noon on one Saturday to twelve o'clock at noon on the following Saturday) at Broken Scar by the Board from the River Tees and of the respective quantities of compensation water discharged daily by the Board into the Rivers Lune and Balder and also of the quantity of water taken daily by them for supply under the powers of this Act from the said gathering grounds of the Rivers Lune and Balder or either of them and shall forthwith publish the same in some newspaper circulating within the borough of Darlington and also deliver a copy to the borough surveyor of Darlington for the time being and likewise a copy to the clerk or secretary appointed by the riparian owners. Report of quantities of water taken by Board.

If the Board at any time make default in publishing or delivering any such report they shall for every such offence be liable to a penalty not exceeding forty shillings which may be sued for and recovered by the said borough surveyor or the said clerk or secretary (as the case may be) in any court of competent jurisdiction.

A.D. 1907.

Penalty for
taking excess
of water
from River
Tees at
Broken Scar.

47. If and whenever the Board shall take in any one week reckoned as aforesaid from the River Tees at Broken Scar any quantity of water not exceeding one million gallons beyond the quantity hereinbefore limited they shall for every such week in which they shall exceed such limited quantity forfeit and pay to any person interested in the River Tees who shall sue for the same the sum of fifty pounds and not less and if in any such week they shall exceed the said limited quantity by more than one million gallons they shall then forfeit and pay as aforesaid the sum of fifty pounds and not less in respect of each one million gallons so taken in excess. And any such person who shall demand any sum so forfeited within three months after the publication of any report of the Board showing any such excess may sue for and recover the same as and by way of liquidated damages in any court of competent jurisdiction:

Provided that in no case shall more than one such forfeit be recoverable in respect of the excess of water taken in any one week.

For the purposes of this section a person interested in the River Tees shall be deemed to be (A) the corporation of Darlington (B) the Tees Salmon Fishery Board (C) the riparian owners or any of them.

Provision
for execu-
tion of
powers of
riparian
owners.

48.—(1) All powers exerciseable by the riparian owners under this Act shall be exercised by them through the agency of meetings convened in accordance with the provisions of this section.

(2) For the purpose of executing and enforcing the provisions of this Act by the riparian owners it shall be lawful for any two or more of such riparian owners (not being joint owners and not being the Board) or for their clerk or secretary appointed as hereinafter provided on request by any two or more of their number to convene a meeting of the riparian owners to be held at some convenient place by notice specifying the object of such meeting and published in one or more newspaper or newspapers circulating within the limits of this Act seven days at least prior to the day appointed for the holding of such meeting and all questions which may be submitted to such meeting consistently with the notice convening the same shall be decided by a majority of votes of the persons present or represented thereat according to the scale and manner of voting hereinafter provided for and such decisions shall be binding upon all the riparian owners whether present or absent from such meeting.

(3) Every such meeting may be adjourned from time to time and from place to place but no business shall be transacted at any adjourned meeting other than that left unfinished at the meeting from which such adjournment took place. A.D. 1907.

(4) The minutes of proceedings and resolutions of every such meeting shall be entered in a book to be kept for the purpose and signed by the chairman of such meeting or of the next meeting.

(5) At every such meeting every riparian owner (not being the Board) who shall be present at such meeting personally or by his agent duly authorised in writing for the purpose shall be entitled to one vote and an additional vote in respect of each one quarter of a mile of river frontage beyond the first belonging to him and in the case of joint owners only one of such joint owners shall be entitled to vote and if any such joint owners who may be entitled to vote at such meeting cannot agree amongst themselves as to which of them shall vote or as to the vote to be given thereat such vote shall not be received.

(6) The riparian owners shall have power if they think fit at any meeting to be convened for the purpose to appoint from time to time a clerk or secretary or to nominate one of their number to act as their clerk or secretary and to confide to him the custody of the books and documents relating to their proceedings and in their name and on their behalf to give notices to the Board and to sue for penalties recoverable from the Board under this Act and generally to carry out the directions of the meetings and also if they think fit to make such rules for regulating their proceedings including the delegation of their powers to a committee or committees as they may deem expedient and also if they think fit to appoint from time to time some proper person or persons (but not exceeding two at any one time) on their behalf to inspect test and examine the condition state of repair and efficiency of the gauges recording instruments and other apparatus for measuring ascertaining and recording and to gauge and measure the quantities of water taken or being taken by the Board from the gathering grounds of the Rivers Lune and Balder or from the River Tees for supply and the quantities of compensation water or additional compensation water discharged or being discharged into the Rivers Lune and Balder and for inspecting and verifying the records thereof and taking copies of or extracts from such records and otherwise ascertaining that the requirements of this Act in the foregoing and other respects have been or are being duly complied with.

A.D. 1907.

(7) All expenses attending the convening and holding of such meetings and the proceedings thereat and the carrying out of the orders or resolutions of such meetings and the remuneration of any officers to be appointed by them shall be borne by the riparian owners who may be entitled to attend such meetings rateably in the proportion which the number of votes to which they are respectively entitled at such meetings shall bear to the total expenses to be provided for and may be recovered summarily as a civil debt.

VII.—SUPPLY OF WATER.

Limits of supply.

49. The limits of this Act for the supply of water shall comprise the boroughs of Stockton-on-Tees Middlesbrough and Thornaby-on-Tees and the parishes townships and places or parts of parishes townships and places set forth in the Second Schedule to this Act and verged red and yellow on the plan signed by the Right Honourable the Earl of Lauderdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred whereof copies have been lodged in the Parliament Office of the House of Lords the Private Bill Office of the House of Commons and with the town clerks of the boroughs of Stockton-on-Tees Middlesbrough and Thornaby-on-Tees respectively and with each of the respective clerks of the peace for the county of Durham and for the north riding of the county of York and the provisions of the Parliamentary Documents Deposit Act 1837 shall apply to such plans as though the same were plans required by the standing orders of Parliament to be deposited with such clerks of the peace Provided that it shall not be lawful for the Board to supply water for consumption within the township of Haughton-le-Skerne verged yellow on the plan or in any other part of the area within which the corporation of Darlington has statutory power to supply water without the consent in writing of the corporation of Darlington for that purpose first had and obtained.

Any area which may be hereafter annexed to or included in any of the boroughs shall be deemed to be within such borough for all the purposes of this Act.

Power to dispose of part of undertaking.

50. The Board may by agreement with and shall if required by the council of any urban or rural district within the limits of supply and beyond the boundaries of the boroughs sell to such council the portion of the undertaking within that district other than any mains pipes or plant used for service beyond that district

at a price to be fixed in default of agreement by an arbitrator to be appointed by the Local Government Board : A.D. 1907.

Provided that in the event of the purchase by any council of the portion of the undertaking situate within their district such district shall cease to be within the limits of the Board for purposes of domestic supply but notwithstanding the purchase the Board may give a supply in bulk or otherwise to such council and nothing in this section shall prejudice or affect the operation of the sections of this Act whereof the marginal notes are "For protection of Cargo Fleet Iron Company Limited" and "For protection of certain large consumers."

51. The Board shall at the request of any person who under the provisions of this Act or any Act incorporated therewith shall be entitled to demand a supply of water for domestic purposes furnish to such person a sufficient supply of water for domestic purposes at the rates hereinafter specified (that is to say) If there be no watercloset or bath in the dwelling-house or part of the dwelling-house to be supplied with water then at the following rates :—

Rates for domestic supply.

Where the annual value of such dwelling-house shall not amount to ten pounds at a rate per centum per annum not exceeding seven pounds ten shillings :

Where the annual value of such dwelling-house shall be ten pounds and under twenty pounds at a rate per centum per annum not exceeding seven pounds :

Where the annual value of such dwelling-house shall be twenty pounds and under forty pounds at a rate per centum per annum not exceeding six pounds ten shillings :

Where the annual value of such dwelling-house shall be forty pounds and upwards at a rate per centum per annum not exceeding six pounds.

If there be a watercloset or waterclosets or a bath or baths in any such dwelling-house then in addition to the rates above specified the following rates shall be payable (that is to say) :—

Where the annual value of such dwelling-house shall not amount to ten pounds per annum the sum of four shillings for each such watercloset and four shillings for each such bath :

Where the annual value of such dwelling-house shall be ten pounds and under twenty pounds the sum of six shillings

A.D. 1907.

for one such watercloset and six shillings for one bath and four shillings for every additional watercloset or bath :

Where the annual value of such dwelling-house shall be twenty pounds and under forty pounds the sum of eight shillings for one watercloset and eight shillings for one bath and four shillings for every additional watercloset or bath :

Where the annual value of such dwelling-house shall be forty pounds and upwards the sum of ten shillings for one watercloset and ten shillings for one bath and four shillings for every additional watercloset or bath.

Nothing in this section shall entitle the Board in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable :

Provided that on and after the thirty-first day of December one thousand nine hundred and fourteen or the completion of the Grassholm Reservoir and of the Conduits No. 1 No. 9 and No. 10 in this Act mentioned whichever shall first happen the Board shall allow one watercloset in each house without making any charge in respect thereof and shall be entitled to charge five shillings per annum for every additional watercloset :

• Provided that in the case of supplies for domestic purposes to consumers outside the boroughs the Board may in addition to the rates for the time being charged to consumers within the boroughs charge one-fourth more than the rates for the time being charged within the boroughs.

Provision of
cisterns.

52. Notwithstanding anything in this Act or in any Act wholly or partially incorporated therewith the Board shall not be compelled to supply water for any watercloset or bath unless there shall be provided for use in connection with such watercloset or bath a cistern of the following dimensions (that is to say) If there shall be a watercloset or waterclosets but no bath supplied or to be supplied therefrom a cistern capable of holding fifty gallons or if there shall be a bath or baths supplied or to be supplied therefrom with or without a water-closet a cistern capable of holding two hundred gallons but

nothing in this section shall be construed to relieve the Board from their obligation to give a constant supply of water for domestic purposes. A.D. 1907.

53. Notwithstanding anything in section 70 of the Waterworks Clauses Act 1847 the water rates for domestic supply shall be paid in advance by equal quarterly payments on the fourteenth day of February the thirteenth day of May the thirteenth day of August and the twenty-third day of November in every year. Payment of water rates.

54. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Board so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. Rates payable by owners of small houses.

55. The Board shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water : Board not bound to supply several houses by one pipe.

Provided that this provision shall not apply in the case of any dwelling-house erected before the passing of this Act.

56. A notice to the Board from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board. Notice of discontinuance.

57.—(1) The Board may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

A.D. 1907.

(2) Such byelaws shall apply only in the case of premises to which the Board are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Board may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Board as the water rates in respect of the premises are recoverable.

Power to supply by measure.

58. The Board may subject to the provisions of this Act supply water for other than domestic purposes on such terms and conditions as the Board think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that notwithstanding anything in this Act contained to the contrary but subject and without prejudice to a full domestic supply the Board shall be compelled to supply water for trade manufacturing and railway purposes.

Supply to houses used partly for trade &c.

59. The Board shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Price of supply by measure.

60. The price per thousand gallons to be charged for a supply of water by measure under this Act shall not exceed one shilling and fourpence within the boroughs and one shilling and eightpence outside the boroughs and shall be at the same rate inside and outside the boroughs respectively to all consumers of a like quantity of water per quarter year for the same purposes.

Supply to large consumers.

61. For a supply of water for trade manufacturing or railway purposes to a consumer within any of the boroughs whose total consumption is not less than five million gallons per quarter year the Board shall be entitled to charge until the completion of the Grassholm Reservoir or until the thirty-first day of December

one thousand nine hundred and fourteen whichever shall first happen not exceeding fourpence and a farthing per thousand gallons and to a consumer of the like quantity outside the boroughs not exceeding fourpence and three farthings per thousand gallons and after the completion of the Grassholm Reservoir or the thirty-first day of December one thousand nine hundred and fourteen whichever shall first happen fourpence per thousand gallons within the boroughs and fourpence half-penny per thousand gallons outside the boroughs respectively Provided that the Board shall unless prevented by unavoidable cause or accident maintain in their mains a pressure equivalent to thirty feet perpendicular above the level of the surface of the pavement in the Middlesbrough Market Place.

62. The Board may at any time require any person before or after being supplied with water for other than domestic purposes to give such security for the due payment of all moneys from time to time payable by such person for or in connection with such supply as the Board may consider sufficient.

A.D. 1907.
Security for water supplied for trade &c. purposes.

63. The Board may sell or let for hire meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to sell or let meters.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Board to let for hire any water fittings to any person supplied by them with water.

64. No person shall connect or except in case of emergency disconnect any meter by means of which any water supplied by the Board is intended to be or has been registered other than an officer of the Board by whom such connecting and disconnecting shall be done on the request and at the cost of the person so supplied or to be supplied with water and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Connecting or disconnecting meters.

65. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Board or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Board shall (without prejudice to any other

Injuring meters &c.

A.D. 1907. right or remedy for the protection of the Board) be liable to a penalty not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained :

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Board or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Board the Board may also enter on the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Board by the person so offending and may be recovered by them as water rates are recoverable.

The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Board when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to supply materials.

66. The Board may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Board in providing such materials and executing such work shall be paid by the person requiring the same.

Power to lay pipes in streets not dedicated to public use.

67. The Board may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

68. So long as the Board have at their disposal a supply of water in excess of the needs for the time being of the population within their limits of supply it shall be lawful for the Board with the consent of the Redcar Urban District Council to sell surplus water to Walker Maynard and Company Limited or other the owners for the time being of the Redcar Ironworks and the Coat-ham Ironworks within the Redcar Urban District but the Board shall not supply under the powers of this section more than two million gallons in any one week.

A.D. 1907.
Power of,
Board to
sell surplus
water in
bulk to
Walker May-
nard and
Company.

The water so supplied shall be delivered to the said works through a meter or meters to be fixed at or near the boundary of the Board's limits of supply and such meter or meters shall be maintained by the Board in proper condition and repair and shall be open to inspection at all reasonable times by any person appointed for that purpose by the corporation of Darlington by the owners lessees and occupiers of lands upon the banks of the River Tees or any of them and by the Tees Salmon Fishery Board respectively.

If the Board shall in any week supply under the powers of this section a larger quantity of water than two million gallons they shall forfeit and pay a penalty of ten pounds to the said corporation the said fishery board or any of the said owners lessees and occupiers who shall sue for the same in any court of summary jurisdiction but not more than one penalty shall be recoverable in respect of any one offence.

69. The premises known as the Cargo Fleet Iron Works situate at South Bank in Normanby and edged red on the plan signed in duplicate by the Right Honourable the Earl of Lauderdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which plan one copy has been deposited in the office of the Clerk of the Parliaments and one copy has been deposited in the Private Bill Office of the House of Commons) shall for all purposes be deemed to be within the limits of this Act for the supply of water and such premises shall continue to remain within such limits and be entitled to be supplied with water by the Board accordingly notwithstanding anything in this Act or any agreement which has been made or any agreement or sale which may hereafter be made between the Board and any urban or rural district council in pursuance of the powers in the Water Acts or in this Act contained or otherwise.

For pro-
tection of
Cargo Fleet
Iron Com-
pany Limi-
ted.

70. The works and premises of Messieurs Bolckow Vaughan and Company Limited situate at South Bank and Grangetown of

For protection
of certain large
consumers.

A.D. 1907. Messieurs Bell Brothers Limited situate at Port Clarence and of
Messieurs The Linthorpe-Dinsdale Smelting Company Limited
situate at Dinsdale or other the owners for the time being of the
said works and premises or any of them shall for all purposes
be deemed to be and remain within the limits of this Act for
the supply of water and shall continue to remain within such
limits and be supplied with water by the Board accordingly not-
withstanding anything in this Act or any agreement or sale which
may hereafter be made between the Board and any urban district
or rural district council in pursuance of the powers in the Water
Acts or in this Act contained or otherwise.

VIII.—FINANCIAL PROVISIONS.

Common
fund.

71. All expenses incurred by the Board in the execution of
this Act shall be defrayed out of a common fund (hereinafter
called "the common fund") to be contributed by the corporations
in proportion to their respective interests in the undertaking of
the Board.

Payment of
contributions
to Board.

72.—(1) For the purpose of obtaining payment from the
corporations of the sums to be from time to time contributed by
them the Board shall issue their precept to each of the cor-
porations stating the sums to be contributed by each corporation
on revenue account and capital account respectively and requiring
each corporation within the time limited by the precept to pay
the sums therein mentioned to the Board or to such persons as
the Board may direct.

(2) Any sum mentioned in a precept addressed by the Board
to any of the corporations as aforesaid shall be a debt due from
that corporation and may be recovered accordingly.

(3) If any of the corporations makes default in complying
with the precept addressed to it the Board may instead of
instituting proceedings for the recovery of a debt or in addition
to such proceedings as to any part of a debt which may for
the time being be unpaid proceed in a summary manner as in
this Act hereafter mentioned to raise within the district of the
defaulting corporation such amount as may be sufficient to pay
the sum due.

Further pro-
vision for
recovery of
contributions
to common
fund.

73.—(1) If any corporation neglects or refuses to pay any
such sum as aforesaid for a period of fourteen days after demand
the Board may by order under their common seal empower any
person to levy by and out of the borough fund and borough rate

of the defaulting corporation or in the case of the Thornaby-on-Tees Corporation out of the district fund and general district rate such sum (the amount to be specified in the order) as may in the opinion of the Board be sufficient to defray the debt so due from the defaulting corporation and all expenses incurred in consequence of the non-payment of such debt. A.D. 1907.

(2) Any person or persons so empowered shall have the same powers of levying the borough rate (or in the case of the Thornaby-on-Tees Corporation the general district rate) and of requiring all officers of the defaulting corporation to pay over any moneys in their hands as the defaulting corporation would have in the case of expenses legally payable out of the borough fund or borough rate (or in the case of the Thornaby-on-Tees Corporation the district fund and general district rate) of such corporation and the said person or persons after repaying all sums of money so due in respect of the order shall pay the surplus (if any) the amount to be ascertained by the Board to or to the order of the defaulting corporation.

74. The Stockton Corporation may borrow for the purposes hereinafter mentioned on the security of their share of the revenue of the waterworks undertaking and of their borough fund and borough rate such sums as they may require not exceeding the amounts following (that is to say):— Power to Stockton Corporation to borrow.

- (1) For the purpose (hereinafter referred to as "purpose No. (1)") of the purchase of lands and the completion of reservoirs filters conduits and works connected therewith and for workshops and workmen's houses any sum not exceeding eighty-four thousand one hundred and seventy-eight pounds:
- (2) For the purpose (hereinafter referred to as "purpose No. (2)") of defraying the cost of extending the Board's distributing mains any sum not exceeding forty-four thousand two hundred and eighty-seven pounds provided that no part of such sum shall be borrowed without the sanction of the Local Government Board:
- (3) For the purpose (hereinafter referred to as "purpose No. (3)") of defraying the expenses incurred in relation to the raising of moneys borrowed by them under the powers of the Water Acts any sum not exceeding twenty thousand nine hundred and eighty-two pounds:

A.D. 1907.

(4) For the purpose (hereinafter referred to as "purpose No. (4)") of defraying their proportion of the costs charges and expenses preliminary to and of and incidental to the promotion and obtaining of this Act the sum required.

Power to
Middles-
brough Cor-
poration to
borrow.

75. The Middlesbrough Corporation may borrow for the purposes hereinafter mentioned on the security of their share of the revenue of the waterworks undertaking and of their borough fund and borough rate such sums as they may require not exceeding the amounts following (that is to say):—

For purpose No. (1) any sum not exceeding one hundred and twenty-six thousand five hundred and thirteen pounds:

For purpose No. (2) any sum not exceeding fifty-two thousand six hundred and forty-four pounds provided that no part of such sum shall be borrowed without the sanction of the Local Government Board:

For purpose No. (3) any sum not exceeding thirteen thousand one hundred pounds:

For purpose No. (4) the sum required.

Power to
Thornaby-
on-Tees
Corporation
to borrow.

76. The Thornaby-on-Tees Corporation may borrow for the purposes hereinafter mentioned on the security of their share of the revenue of the waterworks undertaking and of their district fund and general district rate and of their borough fund and borough rate such sums as they may require not exceeding the amounts following (that is to say):—

For purposes Nos. (1) and (2) any sum not exceeding twenty-one thousand five hundred and eight pounds:

For purpose No. (3) any sum not exceeding one thousand eight hundred and fifty-nine pounds:

For purpose No. (4) the sum required.

As to moneys
borrowed be-
fore passing
of Act.

77. All moneys borrowed by any of the corporations under the Water Acts between the thirty-first day of March one thousand nine hundred and seven and the commencement of this Act shall be deemed to have been borrowed under the powers of this Act.

Periods for
repayment
of moneys
borrowed.

78.—(1) The corporations of Stockton and Middlesbrough shall pay off all moneys borrowed by them respectively under this Act within the respective periods (hereinafter referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for purpose No. (1) within sixty years from the expiration of the financial year in which the same

were respectively borrowed except that all moneys borrowed for the construction of Conduits Nos. 9 and 10 authorised by the Act of 1890 shall be repaid within forty years from the expiration of the financial year in which the same were respectively borrowed :

As to moneys borrowed for purpose No. (2) within such periods as shall be fixed by the Local Government Board :

As to moneys borrowed for purpose No. (3) within the period for which each loan is contracted but in no case exceeding sixty years from the expiration of the financial year in which the same were respectively borrowed :

As to moneys borrowed for purpose No. (4) within five years from the commencement of this Act.

(2) The corporation of Thornaby-on-Tees shall pay off all moneys borrowed by them under this Act within the respective periods (hereinafter referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for purposes Nos. (1) and (2) within sixty years from the expiration of the financial year in which the same were respectively borrowed except that all moneys borrowed for the construction of Conduits Nos. 9 and 10 authorised by the Act of 1890 shall be repaid within forty years from the expiration of the financial year in which the same were respectively borrowed :

As to moneys borrowed for purpose No. (3) within the period for which each loan is contracted but in no case exceeding sixty years from the expiration of the financial year in which the same were respectively borrowed :

As to moneys borrowed for purpose No. (4) within five years from the commencement of this Act.

(3) The corporations shall pay off all moneys borrowed by them respectively under the Water Acts and not repaid at the commencement of this Act within the respective periods limited for their repayment by the Water Acts and any sinking fund formed by any of the corporations for the repayment of any such moneys shall be maintained and continued for that purpose subject to any directions in that behalf which the Local Government Board may see fit to give.

A.D. 1907.

Provisions
of Public
Health Act
1875 as to
mortgages to
apply.

79. The following sections of the Public Health Act 1875 shall with the necessary modifications extend and apply to mortgages granted under this Act (that is to say):—

- Section 236 Form of mortgage;
- Section 237 Register of mortgages;
- Section 238 Transfer of mortgages.

Mode of
payment off
of money
borrowed.

80. The corporations shall respectively pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall subject as hereinafter provided be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the date of borrowing the sum in respect of which the payment is made.

Sinking
fund.

81.—(1) If any of the corporations determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the corporation towards the equal annual payments to the fund.

(4) The corporation may at any time apply the whole or part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the corporation:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the corporation in addition to the payments provided for by this Act.

(7) If it appears to the corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the corporation shall increase the payments to such extent as the Local Government Board may direct.

(8) If the corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together

A.D. 1907. — with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the corporation may with the consent of the Local Government Board discontinue the annual payments to such sinking fund until that Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose as the corporation with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

82. A person lending money to any of the corporations under this Act shall not be bound to inquire as to the observance by the corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporations
not to regard
trusts.

83. The corporations shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the corporation shall from time to time be a sufficient discharge to the corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of
receiver.

84.—(1) The mortgagees of any of the corporations by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in

respect of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds. A.D. 1907.

(2) The application for the appointment of a receiver shall be made to the High Court.

85. Any of the corporations may except as hereinafter provided re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at their disposal within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period. Power to re-borrow.

86.—(1) The borough accountant of each corporation shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund by such corporation in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration showing for the year next preceding the making of such return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied. Annual return to Local Government Board.

A.D. 1907. during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return such borough accountant shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that any of the corporations have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(3) In the event of a borough accountant not being appointed by any of the three corporations it shall be the duty of the town clerk of that corporation to transmit the return required by this section.

Application
of money
borrowed.

87. All money borrowed by any corporation under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Proceeds of
sale of sur-
plus lands to
be treated as
capital.

88. Any capital moneys received by the Board on the sale or lease of any lands in pursuance of the powers of this Act shall be distinguished as capital in the accounts of the Board and may be applied in or towards defraying any expenditure upon the purchase of land or construction of permanent works and capital moneys so received and not so applied shall be applied in discharge of any moneys borrowed under this Act but shall not be applied to the payment of instalments or to payments into any sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such moneys shall not be

re-borrowed Provided that the amount of the borrowing powers of the corporations for expenditure defrayed by the application of sums so received shall be reduced to the extent of the sums applied. A.D. 1907.

89. Notwithstanding anything contained in the Water Acts or this Act any of the corporations may if they see fit discontinue until the thirty-first day of December one thousand nine hundred and fourteen or the completion of the Grassholm Reservoir and of the Conduits No. 1 No. 9 and No. 10 in this Act mentioned whichever shall first happen the payment of the principal sums required to be set apart and paid into any sinking fund under the provisions of the Water Acts or this Act (other than sums payable into such sinking fund in respect of interest on amounts paid to the fund whether such amounts have been applied to repayment of loans or remain in the fund invested or uninvested) for the redemption of moneys borrowed for the construction of works authorised by section 57 of the Act of 1876 section 5 of the Act of 1884 section 7 of the Act of 1890 and section 11 of the Act of 1899. Temporary discontinuance of sinking fund payments.

In the case of any loan which is repayable by any of the corporations on the system of repayment by instalments of principal or of principal and interest such corporation may re-borrow the aggregate amount of principal which would be payable after the passing of this Act in respect of such instalments during the same period :

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

90. The Board shall apply all moneys from time to time received by them in respect of the waterworks undertaking except borrowed moneys and other capital moneys as follows (that is to say) :— Application of revenue.

- (A) In payment of the costs charges and expenses of and incidental to the collection and recovery of water rates and charges and the borrowing of moneys under this Act :
- (B) In payment of the working and establishment expenses and cost of maintenance of the waterworks undertaking :
- (c) In paying to the corporations the sums required by them for payment of interest on moneys borrowed under

A.D. 1907.

the Water Acts and this Act and for instalments or contributions to their sinking funds in respect of those moneys in the following proportions (namely):—

Five twelfths to the corporation of Stockton-on-Tees;

Six twelfths to the corporation of Middlesbrough;
and

One twelfth to the corporation of Thornaby-on-Tees:

Provided that the sums to be from time to time so paid to the corporation of Thornaby-on-Tees shall irrespective of the amount from time to time actually required by that corporation for the payment of interest on borrowed money or for providing instalments or contributions to the sinking fund in no case be less than one-twelfth part of the whole amount distributed amongst the corporations for such payments:

- (D) In providing a reserve fund by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to two hundred thousand pounds which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Board from their waterworks undertaking or to meet any extraordinary claim or demand at any time arising against the Board in respect of that undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the sum of two hundred thousand pounds and so from time to time so often as such reduction happens.

Any balance of revenue remaining in any one year after the thirty-first day of December one thousand nine hundred and fourteen or the completion of the Grassholm Reservoir whichever shall first happen after meeting the above requirements shall be devoted to reducing the price of water supplied for domestic trade manufacturing or railway purposes by way of allowing a discount to consumers within the limits of supply except in cases where water is supplied in bulk under any existing agreement with any local authority made under section 87 of the Act of

1876 Provided that such discount shall only be allowed to consumers who pay their water charges within such period after the same shall become due as the Board shall prescribe and notice to this effect shall be given on every demand note in respect of such charges. Provided also that the Board shall subject to the last preceding proviso allow the same rate of discount to all consumers.

A.D. 1907.

91. As regards any rates which may be assessed and levied under the authority or for any purposes of this Act or to raise or pay any moneys which by or by virtue of this Act may be charged on the borough funds or borough rates of the respective boroughs the occupier of any land used as a public railway or dock shall be assessed to the same in respect of such land in the proportion of one-fourth part only of the net annual value thereof. And as regards any rates which may be increased under the authority of this Act or for any of the purposes of this Act or to raise or pay any moneys as aforesaid and towards which such occupier shall have been assessed at more than one fourth of the net value of such land the corporations respectively shall from time to time so often as the same shall happen repay or allow to such occupier a drawback on the assessment of such occupier to any such rate equal to three fourths of the sum paid by such occupier in respect of the increase to such rate and the amount of such drawback may be recovered by action or may be deducted out of the next or any other rate to which such occupier may be liable.

As to rating of railways &c.

92. The accounts of the Board and of their officers shall be kept in such form as shall be approved or allowed by the Local Government Board and shall (except that the accounts shall be made up yearly to the fourteenth day of February in each year) be made up and audited in like manner and subject to the same provisions as the accounts of urban district councils and the enactments relating to the audit of those accounts and to all matters incidental to and consequential thereon including the penal provisions shall apply accordingly.

Accounts and audit.

IX.—MISCELLANEOUS PROVISIONS.

93.—(1) The Earl of Strathmore and Kinghorne or other the lord or lords of the manors of Hunderthwaite Lune Mickleton and Cotherstone shall be entitled to all game rabbits wild fowl and fish which shall at any time be found in or upon the Hury Blackton and Grassholm Reservoirs and the lands adjoining thereto belonging to the Board together with the sole and

For protection of lords of manors of Hunderthwaite Lune Mickleton and Cotherstone.

A.D. 1907. perpetual right for him the said earl or other the lord or lords aforesaid and their respective lessees sub-lessees and tenants and all others by their or any of their leave of sporting fowling and fishing at all times and for ever in over and upon the said reservoirs and land to the exclusion of the Board and of all other persons together with free and uninterrupted right of access at all times to and over the said reservoirs and land for the exercise of such right of sporting fowling and fishing doing no wilful damage and making good any damage done to the said reservoirs and land or the fences thereof thereby but the right of sporting fowling and fishing hereby conferred shall not be deemed to authorise any act which is forbidden by section 61 of the Waterworks Clauses Act 1847 or which otherwise shall tend to foul or contaminate the water in the said reservoirs or any of them.

(2) The Board shall at their own expense and to the satisfaction of the said earl or other the lord or lords aforesaid within two years from the completion of the Grassholm Reservoir stock the said reservoir with suitable Loch Leven trout or other species of trout selected by the said earl or other the lord or lords aforesaid sufficient in quantity having regard to the extent of water to be so stocked.

(3) The said earl or other the lord or lords aforesaid shall at all times have the right of keeping and using one or more boats on the Grassholm Reservoir as well as on the Blackton and Hury Reservoirs for the exercise of the rights of sporting fishing and fowling to the exclusion of the Board and of all other persons together with free and uninterrupted right of access at all times to and over the said reservoirs and land adjoining the same for the exercise of such rights doing no damage and making good any damage done to the said reservoirs and land or the fences thereof.

(4) The said earl or other the lord or lords aforesaid shall also be entitled at his and their own expense to construct and maintain on each of the said three reservoirs or on land of the Board adjoining the same respectively one boathouse of such description plan and elevation and in such position as shall be agreed between the said earl or other the lord or lords aforesaid and the Board or as in case of dispute shall be settled by arbitration.

(5) Such boathouses are to be for the exclusive use of persons entitled to exercise the said rights of sporting fishing and fowling and of others authorised by any of such persons:

Provided that the right hereby conferred of constructing and maintaining boathouses as aforesaid shall not be deemed to authorise any act which is forbidden by section 61 of the Waterworks Clauses Act 1847 or which shall otherwise tend to foul or contaminate the water in the said reservoirs or any of them. A.D. 1907.

(6) A right of way at least ten feet wide shall be provided and for ever maintained round the margin of the water in the Grassholm Blackton and Hury Reservoirs and within the outside fences of such reservoirs so as to afford at all times convenient access to the said water.

94.—(1) The sums paid by the Board under the provisions of the Water Acts into the London and Westminster Bank to the credit of the persons who were at the dates of such payments the Permanent Secretary of the Board of Trade and the Chairman of the Tees Salmon Fishery Board and the investments representing such sums or so much thereof as shall not for the time being be expended may be transferred by the trustees thereof to the Board of Agriculture and Fisheries upon trust to permit any moneys representing the said trust funds to remain on deposit in the said bank or in the Bank of England or be invested by the Board of Agriculture and Fisheries in Government securities and with power to vary the investments and upon further trust to apply the said trust funds and the income therefrom at such times and in such manner as the Board of Agriculture and Fisheries in their discretion think fit for the advantage of the fisheries of the Tees Fishery District. As to sums paid by Board in respect of release from obligation to maintain fish passes.

(2) Notwithstanding anything in the Water Acts or in the Salmon and Freshwater Fisheries Acts 1861 to 1892 the Board shall not be compelled to make or maintain any fish pass from or out of the Blackton Reservoir the Hury Reservoir the Grassholm Reservoir or any of them.

95.—(1) The Board may from time to time contribute such annual or other sums as they may think fit towards the expense of construction and maintenance of any works which have been or may hereafter be constructed by the council of any urban or rural district with the view of preventing or diminishing the pollution of any part of the River Tees which lies above the point of intake in the said river at Broken Scar or any tributary of such part of the River Tees. Power for Board to contribute to expenses of preventing or diminishing pollution of River Tees &c.

(2) Every such annual or other sum shall be deemed to be payable as part of the cost of the construction or maintenance

A.D. 1907. of the waterworks undertaking and shall be paid by the Board accordingly.

(3) All expenses from time to time incurred by the Board under the authority of this section on account of any contribution towards works or other purposes for which capital may be applied shall previously be authorised by the Local Government Board.

Inquiries by
Local Government
Board.

96.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Board shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Recovery
and applica-
tion of pen-
alties.

97. Penalties under this Act shall be recoverable summarily and all penalties recovered by the Board under this Act shall belong to the Board and shall be carried to the credit of the common fund.

As to
notices &c.

98.—(1) Where any notice or demand under this Act requires authentication by the Board the signature of the general manager or other duly authorised officer of the Board shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Contents of
summons.

99. Any summons or warrant issued for any purpose of this Act may contain in the body thereof or in a schedule thereto several sums.

100. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any water rent meter rent or other charge payable to the Board.

A.D. 1907.
Judges &c.
not disqualified.

101. Nothing in this Act shall exempt the corporations or any of them or the Board from any indictment action or other proceeding in respect of any nuisance caused by them or any of them.

Saving for
actions &c.

102. Nothing in this Act contained shall prejudice or affect an agreement dated the twenty-second day of October one thousand eight hundred and eighty-one and made between the Board of the one part and the local board for the district of Normanby of the other part or the rights of either of the parties thereto.

Saving for
Normanby
agreement.

103. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Board or any of the corporations to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said commissioners are hereby authorised to give).

Crown
rights.

104. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall in the first instance be paid by the Board out of the common fund and shall be repaid thereto by the corporations in the proportions in which they are respectively interested in the water undertaking out of moneys to be borrowed by them under this Act.

Costs of Act.

A.D. 1907. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

WATER ACTS.

The Stockton and Middlesbrough Waterworks Act 1858.

The Stockton and Middlesbrough Waterworks Act 1864.

The Stockton and Middlesbrough Corporations Waterworks Act 1876.

Article 1 and Article 4 (so far as it relates to the Act of 1876) of a Provisional Order of the Local Government Board dated the thirtieth day of April 1879 and confirmed by the Local Government Board's Provisional Orders Confirmation (Aysgarth Union &c.) Act 1879.

A Provisional Order of the Local Government Board dated the twenty-ninth day of April 1880 and confirmed by the Local Government Board's Provisional Orders Confirmation (Bethesda &c.) Act 1880.

The Stockton and Middlesbrough Corporations Waterworks Act 1884.

The South Stockton Local Board (Water) Act 1884.

The Stockton and Middlesbrough Waterworks Act 1888.

The Stockton and Middlesbrough Waterworks Act 1890.

The Tees Valley Waterworks Act 1899.

The Tees Valley Water Act 1901.

The Tees Valley Water Act 1905.

SECOND SCHEDULE.

LIMITS OF SUPPLY.

NAMES OF PARISHES TOWNSHIPS AND PLACES TO WHICH
OR PARTS OF WHICH THE BOARD'S LIMITS OF
SUPPLY EXTEND.

IN THE NORTH RIDING OF THE COUNTY OF YORK.

Acklam.

Clervaux Castle.

Croft Spa.

Acklam West.

Cliffe.

Eppleby.

Cargo Fleet.

Cotherstone.

Eston.

Cleasby.

Croft.

Eston Junction.

IN THE NORTH RIDING OF THE COUNTY OF YORK—*continued.*

A.D. 1907.

Gilling.	Marton.	Stainton.
Hemlington.	Middlesbrough.	Startforth.
Ingleby Barwick.	Newport.	Startforth High.
Lackenby.	Normanby.	Startforth Low.
Lartington.	Ormesby.	Thornaby-on-Tees.
Lazenby.	Ormesby North.	Thorpe.
Linthorpe.	Ovington.	Tollesby.
Mandale.	Romaldkirk.	Wilton.
Manfield.	Rokeby.	Wycliffe.
Maltby.	South Bank.	Yarm.

IN THE COUNTY OF DURHAM.

Aislaby.	Gainford.	Piercebridge.
Archdeacon Newton.	Great Burdon.	Port Clarence.
Barmpton.	Grindon.	Preston-upon-Tees.
Barnard Castle.	Hartburn.	Redmarshall.
Billingham.	Haverton Hill.	Sadberge.
Bishopton.	Headlam.	Saltholme.
Carlbury.	Hurworth.	Staindrop.
Carlton.	Haughton.	Stainton Little.
Cleatlam.	Haughton-le-Skerne.	Stockton-upon-Tees.
Coatham Mundeville.	Ingleton.	Streatlam and Stainton.
Coatham Stobb.	Killerby.	Summerhouse.
Coniscliffe High.	Killinghall.	Thorpe Thewles.
Coniscliffe Low.	Langton.	Urlay Nook.
Cowpen Bewley.	Long Newton.	Ulnaby.
Cowpen.	Marwood.	Westwick.
Denton.	Middleton-One-Row.	Whitton.
Dinsdale.	Middleton St. George.	Whorlton.
Dinsdale Low.	Morton Palms.	Winston.
East Hartburn.	Neasham.	Wolviston.
Eaglescliffe.	Newsham Little.	Wynyard.
Elton.	Newton Bewley.	
Fighting Cocks.	Norton.	

And also the several houses mills manufactories engines furnaces and buildings now being and hereafter to be erected and built in or near the several roads or places on the line of the present or future mains and pipes of the Board in the said county of Durham and north riding of the county of York respectively or either of them or any of such towns townships places houses mills manufactories engines furnaces and buildings respectively.

A.D. 1907.

THIRD SCHEDULE.

DESCRIPTION OF WORKS.

PART I.

Works completed and in use.

Description of Work.	Authorised by
Reservoirs :—	
Fighting Cocks Reservoirs - - -	Act of 1851 s. 25. Act of 1854 s. 5. Act of 1858 ss. 62 63. Act of 1864 s. 6.
Blackton Reservoir - - -	Act of 1876 s. 57.
Hury Reservoir - - -	Act of 1876 s. 57.
Whorley Reservoir - - -	Act of 1876 s. 57.
Sadberge Reservoir - - -	Act of 1876 s. 57.
Eston Reservoir - - -	Act of 1884 s. 5.
Long Newton Reservoir - - -	Act of 1899 s. 11.
Filter beds :—	
Lartington Filter Beds - - -	Act of 1890 s. 7.
Pumping Stations :—	
Broken Scar Pumping Station - - -	Act of 1851 s. 25. Act of 1854 s. 5. Act of 1858 ss. 62 63. Act of 1884 s. 5.
Eston Pumping Station - - -	
Conduits :—	
Conduit from Hury Reservoir to Lartington Filter Beds.	Act of 1876 s. 57 (9).
Line of pipes from Lartington Filter Beds to Whorley Reservoir.	Act of 1876 s. 57 (10).
Line of pipes from Whorley Reservoir to Sadberge Reservoir.	Act of 1876 s. 57 (11).
Line of pipes from Sadberge Reservoir to Long Newton Reservoirs.	Act of 1876 s. 57 (12) and Act of 1899 s. 11.
Line of pipes from Long Newton Reservoirs to Normanby and Eston.	Act of 1876 s. 57 (12) and Act of 1899 s. 11.
Line of pipes from Lartington Filter Beds to Scar Beck.	Act of 1876 s. 57 (13).
Line of pipes from Whorley Reservoir to Walker Hall Gill.	Act of 1876 s. 57 (14).
Line of pipes from Sadberge Reservoir to Fighting Cocks Reservoirs.	Act of 1876 s. 57 (15).
Line of pipes from Ulnaby Beck in the parish of Coniscliffe to Fighting Cocks Reservoirs.	Act of 1884 s. 5 (4).
Line of pipes from Lartington Filter Beds to Cotherstone.	Waterworks Clauses Act 1847 s. 28.
Line of pipes from Winston to Staindrop -	Waterworks Clauses Act 1847 s. 28.
Line of pipes from Gainford to Headlam -	Waterworks Clauses Act 1847 s. 28.

Description of Work.	Authorised by
<i>Conduits—continued.</i>	
Three lines of pipes from Pumping Station at Tees Cottage to Fighting Cocks Reservoirs.	Act of 1851 s. 25. Act of 1854 s. 5. Act of 1858 ss. 62 63. Act of 1864 s. 6.
Line of pipes from Ling Field to Hurworth and Croft.	Waterworks Clauses Act 1847 s. 28.
Line of pipes from Fighting Cocks to Middleton-One-Row.	Waterworks Clauses Act 1847 s. 28.
Line of pipes from Sadberge Reservoir to Carlton Thorpe Thewles Wynyard Norton Hardwick and Norton.	Waterworks Clauses Act 1847 s. 28.
Three lines of pipes from Fighting Cocks Reservoirs to Yarm Eaglescliffe Stockton Norton Billingham Wolviston Thornaby Middlesbrough Ormesby Normanby Eston Lackenby and Coatham.	Act of 1851 s. 25. Act of 1854 s. 5. Act of 1858 ss. 62 63. Act of 1864 s. 6.
Line of pipes from Hartburn to Fairfield	Waterworks Clauses Act 1847 s. 28.
Two lines of pipes from Stockton to Port Clarence.	Waterworks Clauses Act 1847 s. 28.
Line of pipes from Eston Pumping Station to Eston Reservoir.	Act of 1884 s. 5 (2).
Line of pipes from Eston Reservoir to Wilton.	Waterworks Clauses Act 1847 s. 28.
Line of pipes from Eston Reservoir to Hemlington.	Waterworks Clauses Act 1847 s. 28.

PART II.

Works authorised but not completed.

Description of Work.	Authorised by	Period for Completion.
Grassholm Reservoir	Act of 1876 s. 57 (1) -	31st December 1914.
Conduit from Grassholm Reservoir to Rokehole Sike in the Hury Reservoir Conduit No. 1.	Act of 1876 s. 57 (2) -	31st December 1914.
Line of pipes from Lartington Filter Beds to Whorley Reservoir Conduit No. 9.	Act of 1890 s. 7 (12) -	31st December 1914.
Line of pipes from Whorley Reservoir to Ulnaby Beck Conduit No. 10.	Act of 1890 s. 7 (13) -	31st December 1914.

A.D. 1907.

FOURTH SCHEDULE.

PART I.

STOCKTON CORPORATION.

STATEMENT SHOWING THE BORROWING POWERS THE AMOUNTS BORROWED AMOUNTS REPAYED AND AMOUNTS OWING AT 31ST MARCH 1907.

The Security is the Borough Fund Borough Rate and Share of Water Revenue.

Act and Section.	Purpose.	Borrowing Powers.	Period of Repayment.	Amount borrowed.	Amount repaid.	Amount owing 31st March 1907.	Amount in Sinking Fund.
Sanction of Local Government Board under Order 1880 Art. IV. (2)							
Act 1876 sec. 40	Costs of 1876 Act	£ 12,403 0 0 [†]	50	12,403 0 0	£ 2,954 8 1	£ 9,448 11 11	—
Act 1876 sec. 40	Purchase of undertaking	342,054 17 8*	90	342,054 17 8	34,144 1 5	653,744 2 11	16,547 18 7
Act 1876 sec. 40	New works	291,066 13 4*	90	291,066 13 4			
Act 1884 sec. 26	Do.	54,166 13 4*	90	54,166 13 4			
Act 1890 sec. 25	New works &c.	163,450 0 0	60	163,450 0 0	8,589 16 9	154,860 3 3	—
Act 1899 sec. 15	Do.	153,460 0 0	60	153,460 0 0	3,066 10 7	150,393 9 5	985 16 7
Act 1905 sec. 8	Works	185,970 0 0	60	101,792 3 5	455 11 4	101,336 12 1	—
		1,203,171 4 4		1,118,993 7 9	49,210 8 2	1,069,782 19 7	17,533 15 2
Sanction of Local Government Board under Order 1880 Art. IV. (1)	Mains	83,333 6 8 [†]	30	39,046 0 0	9,496 18 1	29,549 1 11	—
Act 1884 sec. 26	Costs of Act	2,427 18 6	20	2,427 18 6	1,680 10 1	747 8 5	—
South Stockton Local Board (Water) Act 1881 sec. 17	Do.	908 10 5	20	908 10 5	628 17 8	279 13 2	—
Act 1888 sec. 13	Do.	1,290 1 1	20	1,290 1 1	749 17 1	540 4 0	—
Act 1890 sec. 25	Do.	1,579 8 9	15	1,579 8 9	1,325 19 1	253 9 8	—
Act 1899 sec. 15	Do.	1,388 17 10	10	1,388 17 10	783 13 6	605 4 3	—
Act 1901 sec. 4	Do.	1,417 5 6	10	1,417 5 6	123 12 7	1,293 12 11	—
Act 1905 sec. 8	Do.	612 19 8	5	612 19 8	115 9 3	497 10 5	—
		9,625 1 9		9,625 1 8	5,407 18 10	4,217 2 10	—
Sanction of Local Government Board under Order 1880 Art. IV. (2)	Loans expenses	7,232 16 8	30	6,251 3 3	5,065 11 0	1,185 12 3	—
Act 1888 sec. 13	Do.	20,000 0 0	not exceeding 60	—	—	—	—
		27,232 16 8		6,251 3 3	5,065 11 0	1,185 12 3	—
Stockton-on-Tees Extension and Improvement Act 1889 secs. 188 and 237.	Costs of and discount on issue of stock.	1,523,362 9 5	90	1,173,915 12 8	89,180 16 1	1,104,734 16 7	17,533 15 2
		16,782 4 11		16,782 4 11	—	16,782 4 11	804 17 5
	Total	1,340,144 14 4		1,190,697 17 7	69,180 16 1	1,121,517 1 6	18,338 12 7

* These items have been reduced to these amounts by the sale to Thornaby of one-sixth part of the interest of Stockton in the water undertaking.

† Subject to the sanction of the Local Government Board. 39,046 only has been sanctioned.

‡ The amount received from South Stockton Local Board in respect of the costs was applied in reduction of the cost of purchase of Stockton share of the undertaking.

A.D. 1907.

PART II.

MIDDLESBROUGH CORPORATION.

STATEMENT SHOWING THE BORROWING POWERS THE AMOUNTS BORROWED REPAYED AND OWING AT 31ST MARCH 1907.
The Security is the Borough Fund Borough Rate and Share of Water Revenue.

Act and Section.	Purpose.	Borrowing Powers.	Period of Repayment.	Amount borrowed.	Amount repaid.	Amount owing 31st March 1907.	Amount in Sinking Fund.
Sanction of Local Government Board under Order 1879 Art. I.							
Act 1876 sec. 40	Costs of 1876 Act	£ 12,403 0 0	Years. 50	£ 12,403 0 0	£ 3,103 11 4	£ 9,299 8 8	£ —
Act 1876 sec. 40	Purchase of undertaking	410,584 5 10	90				
Act 1884 sec. 26	New works	350,000 0 0	90				
Act 1890 sec. 25	Do.	65,000 0 0	90				
Act 1899 sec. 15	Do.	196,140 0 0	60	1,302,527 12 7	80,098 7 10	1,222,429 4 9	12 13 10
Act 1905 sec. 8	Do.	184,152 0 0	60				
	Works	223,164 0 0	40				
		1,441,443 5 10		1,314,930 12 7	83,201 19 2	1,231,728 13 5	12 13 10
Sanction of Local Government Board under Order 1880 Art. IV. (1)	Mains	*100,000 0 0	30	47,356 0 0	11,963 18 11	35,392 1 1	—
Act 1884 sec. 26	Costs of Act	2,913 10 3	20	2,913 10 3	2,865 19 9	47 10 6	—
South Stockton Local Board (Water) Act 1884 sec. 17	Do.	473 8 5	20 not exceeding	473 5	465 12 9	7 15 8	—
Act 1888 sec. 13	Do.	1,548 1 4	20	1,548 1 4	1,071 9 0	476 12 4	—
Act 1890 sec. 25	Do.	1,895 6 7	15	1,895 6 7	1,741 3 2	154 3 5	—
Act 1899 sec. 15	Do.	1,666 13 3	10	1,666 13 3	1,113 19 11	552 13 4	—
Act 1901 sec. 4	Do.	1,700 14 6	10	1,700 14 6	148 7 1	1,552 7 5	—
Act 1905 sec. 8	Do.	735 11 7	5	735 11 7	202 4 9	533 6 10	—
		10,933 5 11		10,933 5 11	7,608 16 5	3,324 9 6	—
Sanction of Local Government Board under Order 1879 Art. I.	Loans expenses	17,300 0 0	{ 5, 7, 10, 25, } and 30	17,300 0 0	15,513 15 11	1,786 4 1	—
Act 1888 sec. 13	Do.	24,000 0 0	not exceeding 60	10,900 0 0	7,068 8 1	3,831 11 11	—
		41,300 0 0		28,200 0 0	22,582 4 0	5,617 16 0	—
	Total	1,593,676 11 9		1,401,419 18 6	125,356 18 6	1,276,063 0 0	12 13 10

* Subject to the sanction of the Local Government Board. 47,356l. only has been sanctioned.

A.D. 1907.

PART III.
THORNABY CORPORATION.
STATEMENT SHOWING THE BORROWING POWERS THE AMOUNTS BORROWED REPAID AND OWING AT 31ST MARCH 1907.
The Security is the District Fund General District Rate Borough Fund Borough Rate and Share of Water Revenue.

Act and Section.	Purpose.	Borrowing Powers.	Period of Repayment.	Amount borrowed.	Amount repaid.	Amount owing 31st March 1907.	Amount in Sinking Fund.
South Stockton Local Board (Water) Act 1884 sec. 8	Purchase of share &c.	£ s. d. 160,000 0 0	Years. 60	£ s. d. 182,357 8 1	£ s. d.	£ s. d.	£ s. d.
Act 1890 sec. 27	New works	32,690 0 0	20	1,018 12 2	23,937 7 8	180,130 12 7	291 13 5
Act 1899 sec. 15	Do.	192,690 0 0	—	183,376 0 3			
Act 1905 sec. 8	Do.	20,692 0 0	60	30,692 0 0			
	Works	37,194 0 0	60 40	25,000 0 0	—	25,000 0 0	—
Act 1888 sec. 15	Costs of Act	260,576 0 0	—	239,068 0 3	23,937 7 8	215,130 12 7	291 13 5
Act 1890 sec. 27	Do.	258 0 2	20	258 0 2	—	258 0 2	136 9 4
Act 1899 sec. 15	Do.	315 17 9	15	315 17 9	—	315 17 9	217 10 3
Act 1901 sec. 4	Do.	277 15 6	10	277 15 6	—	277 15 6	—
Act 1905 sec. 8	Do.	283 9 1	10	283 9 1	—	283 9 1	—
	Do.	122 11 11	5	122 11 11	—	122 11 11	—
		1,257 14 5	—	1,257 14 5	—	1,257 14 5	353 19 7
Act 1888 sec. 15	Loan expenses:	5,155 0 0	60	3,296 1 10	368 0 0	2,928 1 10	—
	Total	266,988 14 5	—	243,621 16 6	24,305 7 8	219,316 8 10	645 13 0

FIFTH SCHEDULE.

A.D. 1907.

PROTECTIVE PROVISIONS SAVED FROM REPEAL.

ACT OF 1858.

xc. That in laying down making executing and subsequently maintaining and repairing the said mains and pipes and any other works of the company upon along across or under or by the side of the North Eastern Railway as shown on the said deposited plans and wheresoever elsewhere the same or any of them shall interfere with or be upon or under or by the side of the said railway or the works or property of the North Eastern Railway Company the company shall lay down make execute and subsequently maintain and repair the same and all excavations and works necessary for those purposes or any of them under the direction and superintendence and to the reasonable satisfaction of the engineer for the time being of the North Eastern Railway Company and shall pay and make good to the North Eastern Railway Company all loss costs charges damages and expenses whatsoever which they shall pay expend or be put to by in about or in consequence of the laying down making and executing the said mains pipes and other works upon along across or under the said railway and property of the said railway company or any part thereof and of the subsequent maintenance and repair thereof or of any of such works or of any other injury caused by the works of the company or the use thereof to the said railway or the works or traffic thereof or other the property of the said railway company and in case of any difference between the engineer of the company and the engineer of the North Eastern Railway Company as to any of the matters aforesaid the same shall be determined by arbitration in the manner prescribed by the clauses of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration and for such purposes those clauses shall be incorporated with and deemed part of this Act Provided always that nothing in this Act contained shall enable the company in any way to interfere with any station station-house engine-shed warehouse shop or other building of the North Eastern Railway Company without the consent of such company in writing in every case first obtained.

Works affecting the North Eastern Railway to be done under inspection of their engineer.

xc. That before any pipe shall be laid upon under over or alongside of the Middlesbrough Branch of the Stockton and Darlington Railway and on the property of the Stockton and Darlington Railway Company or upon under or over any of the lands or works appertaining to the said railway or before the water company shall in any manner use or interfere with the said railway or any of the lands or property of the said railway company the water company shall and they are hereby required to give or cause to be given to the railway company or their

Notice to be given before pipes laid over or along Stockton and Darlington Railway.

A.D. 1907. engineer or secretary for the time being notice of their intention to lay down such pipes or of any such using or interference not less than ten clear days before beginning such work and before commencing with any such using or interference.

For protection
of Stockton
and Darlington
Railway &c.

xcii. That all pipes which shall be laid upon under over or alongside of the said branch railway of the Stockton and Darlington Railway or on the property or upon under or over any of the land or works appertaining to the said railway company shall be laid and remain in such situation position and direction and in such manner as the engineer-in-chief for the time being of such railway company and the engineer-in-chief for the time being of the water company shall mutually agree upon and in case of difference between them then in such situation position and direction and in such manner as shall be directed and decided by the resident engineer for the time being of the North Eastern Railway Company and it shall not be lawful for the water company in carrying into execution the powers of this Act or in repairing upholding and maintaining from time to time any works to be made in pursuance hereof in any way whatever to alter the line or the level of or to injure the Stockton and Darlington Railway or any of the embankments or other works for the time being of such railway nor to interfere with prevent or in anywise impede the free uninterrupted and safe passage upon over or along such railway or any part thereof.

Penalty for
injury to the
Stockton and
Darlington
Railway &c.

xciii. That in case the company their contractors or servants shall enter upon the said Stockton and Darlington Railway or any branch railway of the said company or any of the lands or works appertaining thereto for the purpose of laying pipes upon under over or alongside of the same or in case the company shall in any manner use or interfere with the said railway or any of the land or property of the said railway company without giving such notice as aforesaid or shall lay pipes upon under over or alongside of the said railway on the property of the railway company or upon under or over any of the land or works appertaining thereto in a situation position direction or manner different from that which shall have been approved of by the engineers or their umpire as hereinbefore mentioned then and in any such case the water company shall forfeit and pay to the railway company as or by way of ascertained damages the sum of fifty pounds and the further sum of five pounds for every day during which any pipes which shall have been laid down except in the situation position and direction and in manner hereinbefore authorised shall remain unremoved after notice in writing from such railway company or their engineer for the time being and which said sums shall and may be recoverable in the same manner as any other debt due from the water company provided proceedings for such recovery be commenced within six months after such notice.

Saving rights
of the Stockton
and Darlington
Railway Com-
pany.

xciv. That nothing in this Act contained shall extend to authorise the company absolutely to purchase or take the land or soil or property

of the Stockton and Darlington Railway or of any branch railway belonging thereto or any land or soil or property of or belonging to the said railway company or to abridge alter prejudice or take away any of the rights privileges powers or authorities of or belonging to or vested in such railway company. but all their rights privileges powers and authorities as well under their Acts of Parliament as otherwise are hereby saved and reserved except so far as the same are by this Act expressly varied or affected. Provided nevertheless that it shall be lawful for the water company (subject nevertheless to the restrictions herein and in the said incorporated Acts contained) to purchase and take of and from the said railway company the free and uninterrupted right easement liberty leave licence power and authority at all times and for ever hereafter to lay continue and maintain and from time to time repair restore renew inspect and examine one or more pipe or pipes for the conveyance or transit of water for the purposes of the water company in and through the lands or grounds of the said railway company as shown on the plans deposited with the clerks of the peace as hereinbefore mentioned and as near as may be in the course or direction shown on the same plans with all proper apparatus and conveniences connected therewith and all necessary ingress egress regress and progress to along and from the same. Provided also that all such ingress egress progress and regress shall only be had and enjoyed in and about the laying continuing and maintaining and from time to time repairing restoring renewing inspecting and examining the said pipes and shall not be used had or enjoyed for any other purposes or intent whatsoever the said water company paying to the railway company their successors or assigns such money by way of compensation in gross or such clear yearly rent as may be agreed upon between the said two companies or in default of such agreements then as may be determined by reference to arbitration or by the verdict of a jury in manner in the said Lands Clauses Consolidation Act mentioned and provided and the water company also paying to the said railway company reasonable damages for all injury from time to time occasioned or to be occasioned by the bursting of the pipes or otherwise or by the exercise of such privileges as aforesaid and in case any dispute shall arise respecting such last-mentioned damages such dispute shall be determined and settled in the manner provided in the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration.

A.D. 1907.

ACT OF 1864.

15. In laying down making executing and subsequently maintaining and repairing any mains and pipes or other works of the company upon along across or under or by the side of the North Eastern Railway including the Stockton and Darlington Railway now forming part thereof as shown on the deposited plans and wheresoever elsewhere the same or any of them shall interfere with or be upon or under or by the

Works affecting the North Eastern Railway to be done under inspection of their engineer.

A.D. 1907. side of the said railway or the works or property of the North Eastern Railway Company the company shall lay down make execute and subsequently maintain and repair the same and all excavations and works necessary for those purposes or any of them under the direction and superintendence and to the reasonable satisfaction of the engineer for the time being of the North Eastern Railway Company and shall pay and make good to the North Eastern Railway Company all loss costs charges damages and expenses whatsoever which they shall pay expend or be put to by in about or in consequence of the laying down making and executing the said mains pipes and other works upon along across or under the said railway and property of the said railway company or any part thereof and of the subsequent maintenance and repair thereof or any of such works or of any other injury caused by the works of the company or the use thereof to the said railway or the works or traffic thereof or other the property of the said railway company and in case of any difference between the engineer of the company and the engineer of the North Eastern Railway Company as to any of the matters aforesaid the same shall be determined by arbitration in the manner prescribed by the clauses of the Railways Clauses Consolidation Act 1845 with respect to the settlement of dispute by arbitration and for such purposes those clauses shall be incorporated with and deemed part of this Act Provided always that nothing in this Act contained shall enable the company in any way to interfere with any station station-house engine-shed warehouse shop or other building of the North Eastern Railway Company without the consent of such company in writing in every case first obtained.

Saving rights
of the North
Eastern Com-
pany.

16. Nothing in this Act contained shall extend to authorise the company absolutely to purchase or take the land or soil or property of the North Eastern Railway or of any branch railway belonging thereto or any land or soil or property of or belonging to the said railway company or to abridge alter prejudice or take away any of the rights privileges powers or authorities of or belonging to or vested in such railway company but all their rights privileges powers and authorities as well under their Acts of Parliament as otherwise are hereby saved and reserved except so far as the same are by this Act expressly varied or affected Provided nevertheless that it shall be lawful for the company (subject nevertheless to the restrictions herein and in the said incorporated Acts contained) to purchase and take of and from the said railway company the free and uninterrupted right and power at all times hereafter to lay continue and maintain and from time to time examine repair and replace the same or other pipes or works of the company in and through the lands or grounds of the said railway company as shown on the plans deposited with the clerks of the peace as hereinbefore mentioned and as near as may be in the course or direction shown on the same plans with all proper apparatus and conveniences connected therewith and with all necessary free and

uninterrupted rights of ingress egress progress and regress to along and from the same Provided also that all such ingress egress progress and regress shall only be had and enjoyed in and about the laying continuing and maintaining and from time to time repairing restoring renewing inspecting and examining the said pipes and shall not be used had or enjoyed for any other purposes or intent whatsoever the company paying to the said railway company their successors or assigns such money by way of compensation in gross or such clear yearly rent as may be agreed upon between the said two companies or in default of such agreement then as may be determined by reference to arbitration or by the verdict of a jury in manner in the Lands Clauses Consolidation Act 1845 mentioned and provided and the company also paying to the said railway company reasonable damages for all injury from time to time occasioned or to be occasioned by the bursting of the pipes or otherwise or by the exercise of such privileges as aforesaid and in case any dispute shall arise respecting such last-mentioned damages such dispute shall be determined and settled in the manner provided in the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration.

A.D. 1907.

ACT OF 1876.

59. Any mains or pipes which shall cross the authorised Castle Eden and Stockton Branch of the North Eastern Railway Company shall be carried under the embankment of that branch and all mains and pipes which under the powers of this Act shall be carried under that or any other railway of the said railway company shall be carried under the same in a culvert of sufficient dimensions to admit of the main or pipe being relaid or repaired without interference with the railway the top of the culvert in no case being nearer the bottom of the rails of the railway than two feet and in laying down making executing and subsequently maintaining and repairing any mains pipes culverts or other works upon along across over or under or by the side of any of the North Eastern Railways and wheresoever elsewhere the same or any of them shall interfere with or be upon across over or under the works or property of the said railway company the joint board shall lay down make execute and subsequently maintain and repair the same and from time to time alter the situation or position thereof respectively when necessary and required so to do by the railway company with all excavations and works necessary for those purposes or any of them under the direction and superintendence and to the reasonable satisfaction of the engineer for the time being of the railway company and in accordance with plans drawings and specifications previously submitted to and approved by him and shall pay and make good to the railway company all loss costs charges damages and expenses whatsoever which that company shall sustain pay expend or be put to by in about or in consequence of the laying down making and execution

Works affecting the North Eastern Railway Company to be done under the inspection of their engineer.

A.D. 1907. of the said mains pipes culverts and other works or of the subsequent maintenance and repair thereof and of any injury caused by the works of the joint board or the use thereof or by the bursting of any pipe or reservoir or otherwise howsoever to the said railway or the works or traffic thereof or other the property of the said railway company and in case of any difference between the engineer of the joint board and the engineer of the said railway company concerning such plans drawings or specifications or as to any other of the matters aforesaid the same shall be determined by arbitration in manner prescribed by the sections of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration and for such purposes those sections shall be incorporated with and form part of this Act Provided always that nothing in this Act contained shall enable the joint board in any way to interfere with any station station-house engine-shed warehouse shop or other building or with any water-pipe well or other works of the said railway company without their consent in writing first had and obtained.

Not to take
lands of the
North Eastern
Railway Com-
pany.

60. The joint board shall not without the consent in writing of the North Eastern Railway Company purchase or take any lands or property of that company delineated on the deposited plans but they may purchase and take such right easement or privilege in over under or upon any such lands as shall be necessary for the purpose of laying and constructing and of maintaining renewing and keeping in good repair order and condition the pipes culverts and other works by this Act authorised for the purpose of conveying water and the joint board shall not either temporarily or permanently enter upon use or interfere with any railway or property of the said railway company save only so far as may be necessary for the purpose of constructing and maintaining the said works in accordance with the provisions of this Act.

Saving rights
of North East-
ern Railway
Company.

61. Except as in this Act expressly provided nothing in this Act contained shall take away lessen prejudice or alter any of the estate rights privileges and authorities of or belonging to the North Eastern Railway Company.

* . * * * *

For the protec-
tion of high-
way boards &c.

63. For the protection of the corporation of Darlington and of the Highway Boards for the districts of Stockton and Hartlepool of Darlington of Barnard Castle and of Greta Bridge and of the trustees of the Stockton and Middlesbrough turnpike road all of which bodies are in this section included in the expression "road authority" the following provisions shall have effect (that is to say):—

The word "road" in this section shall include any public carriage and bridle road and any public footway under the control and jurisdiction of the road authority:

The joint board before they commence to break up any road shall give to the clerk to the road authority notice in writing of their

intention so to do and such notice shall be accompanied by a plan whereon shall be shown the proposed situation of the line of pipes to be laid in or across such road :

The road authority or their surveyor may make such alteration in the proposed situation of the said line of pipes or any part thereof in such road as shall in their or his judgment be expedient to secure the least possible interference with the traffic of such road :

The joint board shall not commence to lay the said line of pipes until the said plan shall have been approved in writing by the road authority or their surveyor Provided that if such plan be not disapproved within one month after it shall have been deposited it shall be deemed to have been approved The joint board shall lay the said line of pipes in accordance with the said plan so approved and under the superintendence and to the reasonable satisfaction of the surveyor to the road authority :

The road authority may make such regulations as to the part or parts of the said road to be broken up and as to the fencing watching and lighting of the same as they may deem requisite to ensure the safety and convenience of the traffic passing along and persons using the said road and the joint board shall observe such regulations and if the joint board fail to observe any such regulations they shall in addition to any other liability they may thereby incur be liable to a penalty not exceeding five pounds a day for every day or part of a day during which they so fail to observe the same such penalty to be paid to the road authority whose regulations the joint board shall fail so to observe :

The joint board shall not wholly stop up or permanently stop up or interfere with any road :

The parts of the said road so broken up shall be reinstated and made good under the superintendence and to the satisfaction of the surveyor of the road authority and shall be maintained in good order for the space of two years after they shall have been so reinstated and made good :

If by reason of the breaking up of any road or the laying of any pipe therein or across the same any damage be done to the same or any part thereof by reason of any extra traffic thereon or otherwise in the execution of the work or any injury be caused to any person or cattle or to any vehicle or the contents thereof or to any person using such vehicle the joint board shall make good such damage and shall compensate the road authority for any such damage and the owner of such cattle or vehicle and [such person for such injury and shall indemnify the road authority from all damages loss costs and expenses in respect of such damage or injury :

A.D. 1907.

Nothing in this Act contained shall interfere with the right of the road authority to alter the level of deviate or improve in any manner they think fit any road in or across which any pipe of the joint board shall be laid and the joint board shall forthwith on receiving notice in writing under the hand of the clerk to the road authority so to do alter the position of the said pipes in such manner and to the extent prescribed by such notice :

All works to be executed by the joint board or by the road authority in default of the joint board shall be executed in all things at the expense and risk of the joint board :

All expenses incurred by the road authority by reason of the execution of any of the powers of this Act or of any works or repairs rendered necessary by the acts or defaults of the joint board their contractors officers servants or workmen together with the cost of such superintendence as aforesaid and all moneys to be paid by the joint board to the road authority shall be paid by the joint board to the road authority within twenty-one days after demand thereof in writing or in case of dispute after the same shall have been settled by arbitration and if not so paid such expenses and moneys may be recovered by the road authority from the joint board with full costs of suit in any court of competent jurisdiction :

If any difference arise between the joint board and the road authority in relation to anything to be done or not to be done or any expenses or moneys to be paid under this section such difference shall be determined by an arbitrator to be agreed on between the parties in difference or if not agreed upon to be appointed on the application of either of them by the clerk of the peace for the county of Durham.

* * * * *

ACT OF 1884.

For protection
of the corpo-
ration of Dar-
lington.

16. For the protection of the corporation of Darlington the following provisions shall have effect in addition to the provisions for their protection contained in section 63 of the Act of 1876 :—

- (A) If by reason of the breaking up of any road or the laying of any pipe therein or any other act or omission of the joint board the county surveyor shall be unable to certify in accordance with the provisions of the Highways and Locomotives (Amendment) Act 1878 that any road in the borough of Darlington has been kept in such a state of repair as to entitle the corporation of Darlington to the full amount of contribution from the rates of the county of Durham or to any Government grant towards the maintenance of such road and the county

A.D. 1907.

surveyor shall further certify that the withholding or lessening of such certificate is in consequence of the act or default of the joint board then the joint board shall pay to the corporation of Darlington such sum or sums of money as the corporation of Darlington would have been entitled to from the county rates or Government grant towards the maintenance of such road if such certificate had not been withheld or lessened by or in consequence of the acts or omissions of the joint board:

- (B) The provisions of section 63 of the Act of 1876 shall for the protection of the corporation of Darlington extend and apply with respect to the construction and maintenance of the aqueduct conduit or line of pipes No. 2 by this Act authorised to be made and maintained by the joint board within the borough of Darlington as if the said aqueduct conduit or line of pipes had been authorised to be made and maintained by the Act of 1876.

* * * * *

28. Sections 59 to 61 both inclusive and section 105 of the Act of 1876 shall extend and apply to all works affecting the North Eastern Railway Company executed by the joint board under the powers of this Act and to all rates which may be assessed and levied under the authority or for any of the purposes of this Act or to raise or pay any moneys which by or by virtue of this Act may be charged on the borough funds or borough rates of the respective boroughs as if such works had been authorised to be executed and such rates had been assessed and levied under the authority or for any of the purposes of the Act of 1876 or to raise or pay any moneys which by or by virtue of the Act of 1876 had been charged on such borough funds or borough rates.

Extending to this Act certain provisions of Act of 1876 for protection of North Eastern Railway Company.

29. For the protection of the justices of the peace for the county of Durham and the bridges of the said county the following provisions shall have effect that is to say:—

For protection of justices of Durham.

- (A) Before opening breaking up or in any way interfering with the roadways on or the approaches to or the masonry of any county bridge the joint board shall give not less than forty-eight hours' notice in writing of their intention so to do stating the day and hour of the intended commencement of such work to the engineer and architect for the time being of the county of Durham so that he or his assistant may superintend such work and the reasonable expense of such superintendence shall be paid by the promoters:
- (B) No aqueduct conduit or line of pipes shall be laid so as in any way prejudicially to interfere with or affect the masonry of any county bridge or the roadways over or the approaches to such bridge and if it be necessary for the purpose of laying

A.D. 1907.

any aqueduct conduit or line of pipes over or across any county bridge to raise or alter the level of the roadway over the same then and in every such case the footpaths parapets retaining walls drains and other works connected with the bridge shall be raised restored and reinstated by and at the cost of the joint board to the satisfaction of the county engineer and architect and in such manner as he shall direct :

(c) If at any time any damage shall be occasioned to any bridge or roadway repairable by the justices of the peace for the county of Durham or to any of the fences walls buttresses retaining walls supports culverts drains or footpaths thereof by the construction of any of the works of the joint board or by the repairing thereof either directly or indirectly the joint board shall at their own expense repair and make good any such damage under the superintendence and to the satisfaction of the county engineer and architect and the reasonable cost of such superintendence shall be paid by the joint board Provided that if within forty-eight hours after notice in writing in that behalf to the joint board under the hand of the county engineer and architect the joint board have not commenced to repair and make good such damage or if having commenced the same they do not diligently proceed therewith so as to complete the same with all reasonable despatch the engineer and architect may at the cost of the promoters execute and do all such works and things as may be reasonably necessary to repair and make good such damage :

(d) Nothing in this Act shall take away alter or prejudicially affect the powers or liabilities of the county authorities with respect to main roads under the provisions of the Highways and Locomotives (Amendment) Act 1878 or any Act amending the same.

For protection
of Darlington
District High-
way Board.

30. For the protection of the Darlington District Highway Board the following provision shall have effect in addition to the provisions for their protection contained in section 63 of the Act of 1876:—

If by reason of the breaking up of any road or the laying of any pipe therein or any other act or omission of the joint board the county surveyor shall be unable to certify in accordance with the provisions of the Highways and Locomotives (Amendment) Act 1878 that any road in the highway district has been kept in such a state of repair as to entitle the said highway board to the full amount of contribution from the rates of the county or to any Government grant towards the maintenance of such road and the county surveyor shall further certify that the

withholding or lessening of such certificate is in consequence of the act or default of the joint board then the joint board shall pay to the highway board such sum or sums of money as the highway board would have been entitled to from the county rate or Government grant towards the maintenance of such road if such certificate had not been withheld or lessened by or in consequence of the acts or omissions of the joint board.

A.D. 1907.

ACT OF 1890.

8. The joint board shall carry Conduit No. 10 by this Act authorised if and when constructed across the Forcett Railway by means of a lattice girder bridge and shall at all times maintain remove reconstruct and relay such bridge and conduit in the manner and upon and subject to the terms and conditions agreed upon between the joint board and the Forcett Railway Company in that behalf.

For protection of the Forcett Railway.

* * * * *

36. All mains and pipes laid by the joint board under the powers of this Act which shall cross any railway of the North Eastern Railway Company shall be carried under the same in a culvert or culverts of sufficient dimensions to admit of such mains and pipes being relaid or repaired without interference with the railway the top of any such culvert in no case being nearer the bottom of the rails of the railway than two feet and in laying down making executing and subsequently maintaining and repairing any mains pipes culverts or other works upon along across over or under or by the side of any of the railways of the said company and wheresoever elsewhere the same or any of them shall interfere with or be upon across over or under the works or property of the said company the joint board shall lay down make execute and subsequently maintain and repair the same and from time to time alter the situation or position thereof respectively when necessary and required so to do by the said company with all excavations and works necessary for those purposes or any of them under the direction and superintendence and to the reasonable satisfaction of the engineer for the time being of the said company and in accordance with plans drawings and specifications previously submitted to and approved by him and shall pay and make good to the said company all loss costs charges damages and expenses whatsoever which the said company shall sustain pay expend or be put to by in about or in consequence of the laying down making and execution of the said mains pipes culverts and other works or of the subsequent maintenance and repair thereof and of any injury caused by the works of the joint board or the use thereof or by the bursting of any pipe or reservoir or otherwise howsoever to the said railway or the works or traffic thereof or other the property of the said company and in case of any difference between the engineer of the joint board and the engineer of the said company concerning such plans drawings or

As to execution of works affecting North Eastern Railway Company.

A.D. 1907. specifications or as to any other of the matters aforesaid the same shall be determined by arbitration in manner prescribed by the sections of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration and for such purposes those sections shall be incorporated with and form part of this Act. Provided always that nothing in this Act contained shall enable the joint board in any way to interfere with any station station-house engine-shed warehouse shop or other building or with any water-pipe well or other works of the said company without their consent in writing first had and obtained. Provided also that notwithstanding anything in this section contained the joint board may by and in accordance with any agreement or agreements at any time and from time to time entered into by them with the said company carry all or any of the said mains and pipes over any railway of the said company by means of any bridge or bridges.

Restrictions on taking lands of North Eastern Railway Company.

37. The joint board shall not without the consent in writing of the North Eastern Railway Company purchase or take any lands or property of that company delineated on the deposited plans but they may purchase and take such right easement or privilege in over under or upon any such lands as shall be necessary for the purpose of laying and constructing and of maintaining renewing and keeping in good repair order and condition the pipes culverts and other works by this Act authorised for the purpose of conveying water and the joint board shall not either temporarily or permanently enter upon use or interfere with any railway or property of the said company save only as far as may be necessary for the purpose of constructing and maintaining the said works in accordance with the provisions of this Act.

For protection of highway authorities.

38. For the protection of the county councils of Durham and of the north riding of the county of York of the corporation of Darlington and of the highway boards for the districts of Stockton and Hartlepool of Darlington of Greta Bridge and of Barnard Castle all of which bodies are in this section included in the expression "highway authority" the following provisions shall have effect (that is to say):—

- (1) In this section the word "road" includes any public carriage and bridle road and any public footway under the control and jurisdiction of the highway authority:
- (2) The joint board before they commence to break up any road shall give to the clerk to the highway authority not less than one month's notice in writing of their intention so to do and such notice shall be accompanied by a plan showing the proposed situation of the line of pipes to be laid in or across such road:
- (3) The highway authority or their surveyor may make such alterations in the proposed situation of the said line of pipes or any part thereof in such road as shall in their or his judgment be expedient to secure the least possible interference with the traffic of such road:

- (4) The joint board shall not commence to lay the said line of pipes until the said plan shall have been approved in writing by the highway authority or their surveyor. Provided that if such plan be not disapproved in like manner within one month after it shall have been deposited it shall be deemed to have been approved. The joint board shall lay the said line of pipes in accordance with the said plan so approved and under the superintendence and to the reasonable satisfaction of the surveyor of the highway authority:
- (5) The highway authority may make such regulations as to the part or parts of the said road to be broken up and as to the fencing watching and lighting of the same as they may deem requisite to ensure the safety and convenience of the traffic passing along and persons using the said road and the joint board shall observe such regulations and if the joint board fail to observe any such regulations they shall in addition to any other liability they may thereby incur be liable to a penalty not exceeding five pounds a day for every day or part of a day during which they so fail to observe the same such penalty to be paid to the highway authority whose regulations the joint board shall fail so to observe:
- (6) The joint board shall not wholly stop up or permanently stop up or interfere with any road:
- (7) The parts of the said road so broken up shall be reinstated and made good under the superintendence and to the satisfaction of the surveyor of the highway authority and shall be maintained in good order for the space of two years after they shall have been so reinstated and made good:
- (8) If by reason of the breaking up of any road or the laying of any pipe therein or across the same any damage be done to the same or any part thereof by reason of any extra traffic thereon or otherwise in the execution of the work or any injury be caused to any person or cattle or to any vehicle or the contents thereof or to any person using such vehicle the joint board shall make good such damage and shall compensate the highway authority for any such damage and the owner of such cattle or vehicle and such person for such injury and shall indemnify the highway authority from all damages loss costs and expenses in respect of such damage or injury:
- (9) Nothing in this Act contained shall interfere with the right of the highway authority to alter the level of deviate or improve in any manner they think fit any road in or across which any pipe of the joint board shall be laid and the joint board shall forthwith on receiving notice in writing under the hand of the clerk to the highway authority so to do alter the position

A.D. 1907.

of the said pipe in such manner and to the extent prescribed by such notice:

- (10) All works to be executed by the joint board or by the highway authority in default of the joint board shall be executed in all things at the expense and risk of the joint board:
- (11) All expenses incurred by the highway authority by reason of the execution of any of the powers of this Act or of any works or repairs rendered necessary by the act or default of the joint board their contractors officers servants or workmen together with the cost of such superintendence as aforesaid and all moneys to be paid by the joint board to the highway authority shall be paid by the joint board to the highway authority within twenty-one days after demand thereof in writing or in case of dispute after the same shall have been settled by arbitration and if not so paid such expenses and moneys may be recovered by the highway authority from the joint board with full costs of suit in any court of competent jurisdiction:
- (12) If any difference arise between the joint board and the highway authority in relation to anything to be done or not to be done or any expenses or moneys to be paid under this section such difference shall be determined by an arbitrator to be agreed on between the parties in difference or if not agreed upon to be appointed on the application of either of them by the President for the time being of the Institution of Civil Engineers in London:
- (13) If by reason of the breaking up of any road or the laying of any pipe therein or any other act or omission of the joint board the surveyor of the county council of Durham shall be unable to certify in accordance with the provisions of the Highways and Locomotives (Amendment) Act 1878 that any road in the borough of Darlington or in the district of any highway board for any highway district in the county of Durham has been kept in such a state of repair as to entitle the corporation of Darlington or any such highway board as last aforesaid (as the case may be) to the full amount of contribution from the county rate of the county of Durham towards the maintenance of such road and the said surveyor shall further certify that the withholding or lessening of such certificate is in consequence of the act or default of the joint board then the joint board shall pay to the corporation of Darlington or any such highway board as last aforesaid (as the case may be) such sum or sums of money as the corporation of Darlington or any such highway board as last aforesaid (as the case may be) would have been entitled to

from such county rate towards the maintenance of such road A.D. 1907.
if such certificate had not been withheld or lessened by or
in consequence of the act or omission of the joint board.

39. For the protection of the county councils of Durham and of the north riding of the county of York both of which bodies are in this section included in the expression "county council" the following provisions shall have effect (that is to say):— For protection
of county
councils.

- (1) Before opening breaking up or in any way interfering with the roadways on or the approaches to or the masonry of any bridge repairable by or at the expense of the county council the joint board shall give to the clerk of the county council not less than one month's notice in writing of their intention so to do and such notice shall be accompanied by a plan showing the proposed situation of the line of pipes to be laid in connection with the roadway on or the approaches to such bridge. The county council or their surveyor may make such alterations in the proposed situation of the said line of pipes or any part thereof as shall in their or his judgment be expedient to secure the stability of such bridge and the least possible interference with the traffic over the same:
- (2) The joint board shall not commence to lay the said line of pipes until the said plan shall have been approved in writing by the county council or their surveyor. Provided that if such plan be not disapproved in like manner within one month after it shall have been deposited it shall be deemed to have been approved. The joint board shall lay the said line of pipes in accordance with the said plan so approved:
- (3) Before actually commencing the work the joint board shall give not less than forty-eight hours notice in writing of their intention so to do stating the day and hour of the intended commencement of such work to the surveyor of the county council so that he or his assistant may superintend such work and the reasonable expense of such superintendence shall be paid by the joint board:
- (4) No aqueduct conduit or line of pipes shall be laid so as in any way prejudicially to interfere with or affect the masonry of any bridge repairable by the county council or the roadways over or the approaches to such bridge and if it be necessary for the purpose of laying any aqueduct conduit or line of pipes over or across any such bridge to raise or alter the level of the roadway over the same then and in every such case the footpaths parapets retaining walls drains and other works connected with the bridge shall be raised restored and reinstated by and at the cost of the joint board to the

A.D. 1907.

satisfaction of the surveyor of the county council in such manner as he shall direct:

- (5) If at any time any damage shall be occasioned to any bridge or roadway repairable by or at the expense of the county council or to any of the fences walls buttresses retaining walls supports culverts drains or footpaths thereof by the construction of any of the works of the joint board or by the repairing thereof either directly or indirectly the joint board shall at their own expense repair and make good any such damage under the superintendence and to the satisfaction of the surveyor of the county council and the reasonable cost of such superintendence shall be paid by the joint board:
 - (6) The joint board shall at their own expense provide to the satisfaction of the surveyor of the county council proper accommodation for any traffic by reason of the construction of the works of the joint board or by reason of any damage occasioned by such construction prevented or interfered with in using any bridge or roadway repairable by or at the expense of the county council. If within forty-eight hours after notice in writing in that behalf to the joint board under the hand of the surveyor of the county council the joint board have not commenced to repair and make good any such damage or to provide any such accommodation as aforesaid or if having commenced the same they do not diligently proceed therewith so as to complete the same with all reasonable despatch such surveyor may at the cost of the joint board execute and do all such works and things as may be reasonably necessary to repair and make good such damage or to provide such accommodation:
 - (7) Subsections (5) to (12) of the section of this Act whereof the marginal note is "For protection of highway authorities" shall apply as if re-enacted (*mutatis mutandis*) in this section:
 - (8) Nothing in this Act shall take away alter or prejudicially affect the powers or liabilities of the county council with respect to main roads under the provisions of the Highways and Locomotives (Amendment) Act 1878 or any Act amending the same.
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SIXTH SCHEDULE.

A.D. 1907.

REGULATIONS FOR MEETINGS AND PROCEEDINGS OF BOARD.

The Board may meet and adjourn as it thinks proper.

The quorum of the Board shall consist of five members.

The Board shall at its first meeting after the ninth day of November in each year appoint a chairman of its meetings for that year.

If the chairman elected is not present at the time appointed for holding any meeting the members present shall choose one of their number to be chairman of such meeting.

Every question at a meeting shall be determined by a majority of votes of the members present and voting on that question.

In case of an equal division of votes the chairman shall have a second or casting vote except in the case of the election of chairman before mentioned on which occasion the chairman shall only vote in case of an equality of votes.

The proceedings of the Board shall not be invalidated by reason of any vacancy or vacancies amongst its members or any defect in the mode of appointment of such Board or of any member thereof.

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